

to construct and reconstruct them, and to make assessments therefor on the adjoining lots, and creating a lien therefor, payment to be enforced by proceedings in court, is not in conflict with Const. U. S. Amend. 14, securing to all persons the equal protection of the laws.—*Walston v. Nevin*, 128 U. S. 578, 9 S. Ct. 192, 32 L. Ed. 544, affirming *Nevin v. Rouch*, 86 Ky. 492, 5 S. W. 546.

Where a special assessment to pay for a particular work has been held to be illegal, a subsequent authority given to make a new special assessment to pay for the completed work is not violative of Const. U. S. Amend. art. 14, prohibiting any state denying to any person within its jurisdiction the equal protection of the laws. Judgment, *Cummings v. West Chicago Park Com'rs*, 54 N. E. 941, 181 Ill. 136, affirmed.—*Lombard v. West Chicago Park Com'rs*, 21 S. Ct. 507, 181 U. S. 33, 45 L. Ed. 731.

A state statute under which three-fourths of the cost of paving a city street may be assessed upon abutting property in proportion to foot frontage, such assessment to be a lien thereon, is not obnoxious to the fourteenth amendment to the federal constitution. Judgment, *Kelly v. Chadwick*, 29 So. 295, 104 La. 719, affirmed.—*Chadwick v. Kelly*, 23 S. Ct. 175, 187 U. S. 540, 47 L. Ed. 293.

The equal protection of the laws guaranteed by the federal Constitution is not denied to a railway company by requiring it to stand the entire expense of removing and rebuilding its bridge and culvert, made necessary by the proposed widening and deepening of the channel of a creek by drainage commissioners acting under the authority of Farm Drainage Act, Ill. July 1, 1885, to effect the drainage of low lands. Decree, 72 N. E. 219, 212 Ill. 103, affirmed.—*Chicago, B. & Q. Ry. Co. v. People of State of Illinois*, 26 S. Ct. 341, 200 U. S. 561, 50 L. Ed. 596, 4 Ann. Cas. 1175.

Nonresident owners of lands within the levee district created by Act Ark. Feb. 15, 1893, p. 31, are not denied the equal protection of the laws because section 11 of that act, as amended in Act Ark. April 2, 1895, p. 88, § 1, while requiring personal service of summons upon resident owners or occupants for at least 20 days before rendering a decree of sale for unpaid levee taxes, provides for constructive service by publication upon nonresident owners of only 4 weeks. Decree (1905) 85 S. W. 252, 74 Ark. 174, affirmed.—*Ballard v. Hunter*, 27 S. Ct. 261, 204 U. S. 241, 51 L. Ed. 461.

An owner of property lying directly back of property abutting on a street improvement cannot claim to be denied the equal protection of the laws guaranteed by Const. U. S. Amend. 14, on the theory that the hearing afforded him does not, as in the case of abutting owners, give him an opportunity to be heard as to the amount of the assessment against his property, where the amount of such assessment is the same as the assessment against the abutting property, and measures the contingent liability to which the back-lying property may be subjected if the abutting property, which is made primarily liable, fails to satisfy the assessment. Judgment (1905) 74 N. E. 260, 38 Ind. App. 226, affirmed.—*Cleveland, C. & St. L. Ry. Co. v. Porter*, 28 S. Ct. 647, 210 U. S. 177, 52 L. Ed. 1012.

The equal protection of the law is not denied to the owner of property lying directly back of property abutting on a street improvement by a law creating a taxing district of the property along the line of the improvement and extending back therefrom 150 feet and providing that property 50 or more feet distant from the street and within 150 feet therefrom shall be liable if the abutting 50 feet which are primarily liable prove insufficient to pay the cost of the improvements.—*Id.*

The distinction between resident and non-resident owners of abutting property in Act

May 19, 1896, 29 Stat. 125, c. 206, creating a drainage system for the District of Columbia, in that the coercion of the law as to making connections with a sewer is by criminal punishment in the case of residents, whereas, against nonresident owners, the district does the work in case of their neglect, and assesses the cost against the property as a tax, does not invalidate the statute for discrimination, even if Congress cannot enact discriminating legislation. Judgment (1907) 29 App. D. C. 563, reversed.—*District of Columbia v. Brooke*, 29 S. Ct. 560, 214 U. S. 138, 53 L. Ed. 941.

Lessees of state tidelands are not denied the equal protection of the laws contrary to the fourteenth amendment, by state statutes authorizing the assessment of such leaseholds for local improvements.—*Trimble v. City of Seattle*, 34 S. Ct. 218, 231 U. S. 683, 58 L. Ed. 435, affirming judgment 116 P. 647, 64 Wash. 102.

Municipal ordinance establishing a tax district where boundary line after running on a line not 100 feet back from the street jumped 500 feet, when it encountered an undivided tract, and that on the opposite side of the street was 150 feet or 240 feet away, violates Const. Amend. 14.—*Gast Realty & Investment Co. v. Schneider Granite Co.*, 36 S. Ct. 254, 240 U. S. 55, 60 L. Ed. 523, reversing judgment *Schneider Granite Co. v. Gast Realty & Inv. Co.*, 168 S. W. 687, 259 Mo. 153, and rehearing denied *Gast Realty & Inv. Co. v. Schneider Granite Co.*, 36 S. Ct. 400, 240 U. S. 55, 60 L. Ed. 526.

Equal protection of the laws is not denied owners of property assessed in curative proceedings without opportunity to be heard as to amount of awards to the owners of property condemned.—*St. Louis & Kansas City Land Co. v. Kansas City*, 36 S. Ct. 647, 241 U. S. 419, 60 L. Ed. 1072, affirming judgment *Kansas City v. St. Louis & Kansas City Land Co.*, 169 S. W. 62, 260 Mo. 395.

235. Regulation of use of streets and other highways.

See 10 Cent. Dig. Const. Law, § 683.

Comp. Laws Utah, § 2087, making any one who drives a herd of horses, mules, asses, cattle, sheep, goats, or swine over a public highway constructed on a hillside liable for damages by such animals in destroying the banks, or rolling rocks into the highway, does not deny to such person the equal protection of the laws.—*Jones v. Brim*, 17 S. Ct. 282, 165 U. S. 180, 41 L. Ed. 677.

An ordinance prohibiting the moving of any building upon or across the streets without the written permission of the mayor or president of the city council, or, in their absence, of a councilor, is not a denial of the equal protection of the law.—*Wilson v. Eureka City*, 19 S. Ct. 317, 173 U. S. 32, 43 L. Ed. 603.

The equal protection of the laws is not denied to a stage coach company by a municipal ordinance prohibiting the use of advertising trucks, vans, or wagons in the city streets, because "ordinary business wagons" when "engaged in the usual business or regular work of the owner, and not used merely or mainly for advertising," are expressly permitted to exhibit "business notices," nor because advertising is allowed on the stairs of the elevated railways and on elevated structures.—(1911) *Fifth Ave. Coach Co. v. City of New York*, 31 S. Ct. 709, 221 U. S. 467, 55 L. Ed. 815, affirming decree (1909) 86 N. E. 824, 194 N. Y. 19, 21 L. R. A. (N. S.) 744, 16 A. & E. Ann. Cas. 695, which affirms (1908) 110 N. Y. S. 1037, which affirms (1908) 111 N. Y. S. 759.

237. Regulation of keeping and use of animals.

A municipal ordinance, adopted under legislative authority, forbidding the establishment or maintenance of a dairy or cow stable within

the city limits without having received permission so to do from the municipal assembly by a proper ordinance, is not a denial of the equal protection of the laws.—*Fischer v. City of St. Louis*, 24 S. Ct. 673, 194 U. S. 361, 48 L. Ed. 1018, affirming judgment *City of St. Louis v. Fisher*, 87 S. W. 872, 167 Mo. 654, 64 L. R. A. 679, 99 Am. St. Rep. 614; *Scheff v. Same*, 24 S. Ct. 676, 194 U. S. 373, 48 L. Ed. 1024, affirming judgment *City of St. Louis v. Scheff*, 67 S. W. 1100, 167 Mo. 666.

An arbitrary and unreasonable discrimination against the sheep industry, prohibited by the guaranty in Const. U. S. Amend. 14, of the equal protection of the laws, is not made by Rev. St. Idaho, §§ 1210, 1211, under which damages may be recovered from one who permits his sheep to graze on the public domain within two miles of a dwelling house.—*Bacon v. Walker*, 27 S. Ct. 289, 204 U. S. 311, 51 L. Ed. 490, affirming judgment *Walker v. Bacon* (Idaho, 1905) 81 P. 155; *Bown v. Walling*, 27 S. Ct. 292, 204 U. S. 320, 51 L. Ed. 503, affirming judgment *Walling v. Bown* (1904) 76 P. 318, 9 Idaho, 740.

238. Occupation and employment in general.

See 10 Cent. Dig. Const. Law, §§ 688-690, 695, 706-708.

The ordinances of the city of San Francisco give the board of supervisors authority, at their discretion, to refuse permission to carry on laundries, except where located in buildings of brick or stone. The appellants applied for and were refused permission, and thereafter they were convicted of a violation of the above ordinances, and sentenced to imprisonment. Held, that the ordinances were unconstitutional and invalid; it being a breach of the fourteenth amendment to the constitution to empower any man, or body of men, at his or their absolute and unrestrained discretion, to give or withhold permission to carry on a lawful business in any place.—*Yick Wo v. Hopkins*, 118 U. S. 356, 6 S. Ct. 1064, 30 L. Ed. 220.

The Utah statute forbidding the employment of workmen for more than eight hours a day in mines, and in the smelting, reduction, or refining of ores or metals, is not a denial of due process of law or the equal protection of the laws.—*Holden v. Hardy*, 18 S. Ct. 383, 169 U. S. 366, 42 L. Ed. 780.

The proviso that keeping a barber shop open on Sunday for the purpose of cutting hair and shaving beards shall not be deemed a work of necessity or charity, which follows the exception as to works of necessity or charity, in Gen. St. Minn. 1894, § 6513, prohibiting Sunday labor, does not make a purely arbitrary classification in conflict with the federal constitution, but is within the limits of the legislative police power. Judgment, *State of Minnesota v. Petit*, 77 N. W. 225, 74 Minn. 376, affirmed.—*Petit v. State of Minnesota*, 20 S. Ct. 666, 177 U. S. 164, 44 L. Ed. 716.

The equal protection of the laws is not denied to a contractor for a public work or his employés by the provisions of Gen. St. Kan. 1901, §§ 3827-3829, making it a criminal offense for such contractor to permit or require an employé to perform labor upon the work in excess of eight hours each day. Judgment, *State v. Atkin*, 87 P. 519, 64 Kan. 174, 97 Am. St. Rep. 348, affirmed.—*Atkin v. State of Kansas*, 24 S. Ct. 124, 191 U. S. 207, 48 L. Ed. 148.

The exemption of coal mines not employing 10 or more men from the operation of Acts Ark. 1906, p. 558, c. 219, § 1, under which miners employed at quantity rates are prevented from contracting for wages upon the basis of screened coal instead of the weight of the coal as originally produced in the mine, does not render such statute invalid under Const. U. S.

Amend. 14, as denying the equal protection of the laws. Judgment (1906) 98 S. W. 729, 81 Ark. 304, affirmed.—*McLean v. State of Arkansas*, 29 S. Ct. 206, 211 U. S. 539, 53 L. Ed. 315.

The prohibition of employment of children under age of 16 in hazardous occupations by Laws Ill. 1903, p. 187, is not a violation of the guaranty in Const. U. S. Amend. 14, for the equal protection of the laws.—*Sturges & Burn Mfg. Co. v. Beauchamp*, 34 S. Ct. 60, 231 U. S. 320, 58 L. Ed. 245, L. R. A. 1915A, 1196, affirming judgment *Beauchamp v. Sturges & Burn Mfg. Co.*, 95 N. E. 204, 250 Ill. 303.

Including hotels among the specified establishments in which, under St. Cal. 1911, p. 437, women may not be employed for more than 8 hours a day or 48 hours a week, does not render the statute discriminatory.—*Miller v. Wilson*, 35 S. Ct. 342, 236 U. S. 373, 59 L. Ed. 628, L. R. A. 1915F, 829, affirming judgment *Ex parte Miller*, 124 P. 427, 162 Cal. 687.

Exempting women harvesting or canning perishable fruit or vegetables from operation of St. Cal. 1911, p. 437, does not render the statute unreasonably discriminatory.—Id.

The state may forbid women employed in hotels from working more than certain hours, as is done by St. Cal. 1911, p. 437, without imposing similar restrictions on boarding houses, etc., of employes as stenographers, or assistants in professional classes, and domestic servants.—Id.

Exempting graduate nurses in hospitals from operation of St. Cal. 1911, p. 437, as amended by St. Cal. 1913, p. 713, does not render the statute invalid as unreasonably discriminatory.—*Bosley v. McLaughlin*, 35 S. Ct. 345, 236 U. S. 385, 59 L. Ed. 632.

The state may forbid women employed in hospitals from working longer than certain hours, as is done by St. Cal. 1911, p. 437, as amended by St. Cal. 1913, p. 713, without imposing similar restrictions on women in similar employments elsewhere.—Id.

Equal protection of the laws is not denied by Act Ind. March 8, 1907 (Laws 1907, c. 121), requiring owners of coal mines and other similar places to provide suitable washhouses for employes on request.—*Booth v. State of Indiana*, 35 S. Ct. 617, 237 U. S. 391, 59 L. Ed. 1011, affirming judgment 100 N. E. 563, 179 Ind. 405.

Equal protection of the laws is not denied contrary to Const. U. S. Amend. 14, by Consol. Laws N. Y. c. 31, § 14, providing that only citizens can be employed in public works and that citizens of New York must be given preference.—*Heim v. McCall*, 36 S. Ct. 78, 239 U. S. 175, 60 L. Ed. 206, affirming judgment 108 N. E. 1095, 214 N. Y. 629.

239. Prohibition of trade or business.

See 10 Cent. Dig. Const. Law, §§ 694, 696.

A city ordinance prohibiting, within defined limits, washing and ironing in public laundries between 10 p. m. and 6 a. m., is not unconstitutional, as denying to any person the equal protection of the laws.—*Barbier v. Connolly*, 113 U. S. 27, 5 S. Ct. 357, 28 L. Ed. 923.

An ordinance, prohibiting the carrying on of a laundry business within certain designated limits in a city, between the hours of 10 o'clock at night and 6 in the morning, cannot be objected to because persons engaged in other lines of business are not required to cease from their labors during the same hours at night.—*Soon Hing v. Crowley*, 113 U. S. 703, 5 S. Ct. 730, 28 L. Ed. 1145.

The equal protection of the laws is not denied an Ohio corporation, engaged in the manu-

facture and sale of oleomargarine within the state of Ohio, by the statutes of that state forbidding the manufacture or sale of any oleomargarine which contains any coloring matter, although by the Ohio statutes harmless coloring matter may be used in butter. Judgment *State v. Capital City Dairy Co.*, 57 N. E. 62, 62 Ohio St. 350, 57 L. R. A. 181, affirmed.—*Capital City Dairy Co. v. State of Ohio*, 22 S. Ct. 120, 183 U. S. 238, 46 L. Ed. 171.

The equal protection of the laws is not denied by Const. Cal. art. 4, § 26, avoiding all contracts for the sale of shares of corporate stock on margin, because this provision strikes only at some, and not all, objects of possible speculation. Judgment, *Parker v. Otis*, 62 P. 571, 927, 130 Cal. 322, 92 Am. St. Rep. 56, affirmed.—*Otis v. Parker*, 23 S. Ct. 168, 187 U. S. 608, 47 L. Ed. 323.

A municipal ordinance prohibiting keeping of billiard or pool tables for hire does not deny equal protection of laws because hotel keepers may maintain them for their registered guests.—*Murphy v. People of State of California*, 32 S. Ct. 697, 225 U. S. 623, 56 L. Ed. 1229, 41 L. R. A. (N. S.) 153.

Prohibiting the sale by itinerant vendors of any drugs intended for the treatment of disease or injury under Act No. 49, of 1894, La., § 12, does not violate the equal protection of the law clause of the fourteenth amendment, although the sale by other persons is permitted.—*Bacaus v. State of Louisiana*, 34 S. Ct. 439, 232 U. S. 334, 58 L. Ed. 627.

Sale of food preservatives containing boric acid may be forbidden, as is done by Hurd's Rev. St. Ill. 1913, c. 127b, §§ 8, 22, as construed by the state court, without denying the equal protection of the law.—*Price v. People of State of Illinois*, 35 S. Ct. 892, 238 U. S. 446, 59 L. Ed. 1400, affirming judgment *People v. Price*, 101 N. E. 196, 257 Ill. 587, Ann. Cas. 1914A, 1154.

240. Regulation of trade or business in general.

See 10 Cent. Dig. Const. Law, §§ 688, 692, 693, 697-699.

Act Pa. May 21, 1885, providing that no person shall manufacture out of any compound, other than that produced from unadulterated milk, any articles designed to take the place of butter or cheese, nor shall sell, or offer for sale, the same as an article of food, does not deny to any person the equal protection of the laws.—*Powell v. Pennsylvania*, 127 U. S. 678, 8 S. Ct. 992, 1257, 32 L. Ed. 253, affirming judgment 114 Pa. St. 265, 7 A. 913, 60 Am. Rep. 350.

The Texas law (2 Sayles' Civ. St. p. 124, art. 3226a, § 4), requiring an applicant for a liquor license to execute in advance a bond payable to the state, conditioned that he will not sell liquor to any person after having been notified by an officer or by certain relatives of such person not to do so, any of whom are authorized to sue on the bond in case of a breach, and further imposing a state and county occupation tax, and requiring payment of all taxes a year in advance, is not in conflict with the fourteenth amendment of the constitution of the United States, providing that no state shall deny any person the equal protection of the law.—*Giozza v. Tiernan*, 148 U. S. 657, 13 S. Ct. 721, 37 L. Ed. 599.

A valued policy law of a state is not unconstitutional, as denying to persons within its jurisdiction the equal protection of its laws, because it applies only to the business of fire insurance. Judgment, *Daggs v. Orient Ins. Co.*, 38 S. W. 85, 136 Mo. 382, 35 L. R. A. 227, 58 Am. St. Rep. 638, affirmed.—*Orient Ins. Co. of Hartford, Conn., v. Daggs*, 19 S. Ct. 281, 172 U. S. 557, 43 L. Ed. 552.

A discrimination in favor of agricultural products or live stock in the hands of the producer or raiser, made by the Illinois trust act of June 20, 1893, exempting them from the provisions which prohibit a recovery of the price of articles sold by any trust or combination formed in restraint of trade or competition in violation of that act, renders the act repugnant to the provisions of Const. U. S. Amend. art. 14, in respect to equal protection of the laws. Judgment, *Union Sewer Pipe Co. v. Connelly (C. C.)* 99 F. 354, affirmed.—*Connelly v. Union Sewer Pipe Co.*, 22 S. Ct. 431, 184 U. S. 540, 46 L. Ed. 679.

The fourteenth amendment to the federal Constitution is not violated by the provisions of Rev. St. Tex. art. 3395, which make a majority vote in favor of the prohibition of the liquor traffic in a county or precinct a bar to the resubmission of the question to the voters of any political subdivision thereof until after prohibition has been defeated at a subsequent election in the entire county or precinct, while the failure to carry prohibition in a county is no bar to the immediate resubmission of the question to the voters of its political subdivisions, and the corresponding failure in town or city is no bar to the immediate resubmission of the question to the voters of the larger territory. Judgment (Cr. App.) 73 S. W. 15, affirmed.—*Ripley v. State of Texas*, 24 S. Ct. 516, 193 U. S. 504, 48 L. Ed. 767.

A state local option law does not deny a retail liquor dealer the equal protection of the laws because it excepts from its operation druggists, manufacturers, persons who give away liquors in their private dwellings, and railway corporations dispensing liquors in dining and buffet cars under state license. Judgment 70 N. E. 1131, 68 Ohio St. 688, affirmed.—*State of Ohio ex rel. Lloyd v. Dollison*, 24 S. Ct. 703, 194 U. S. 445, 48 L. Ed. 1062.

A foreign corporation whose license to do business in Texas is sought to be forfeited by a suit brought under the anti-trust laws of that state cannot claim to be denied the equal protection of the laws, where the discriminatory features of the prior anti-trust laws have been removed by Act Tex. May 25, 1899, although they may still remain in the Revised Statutes of the state and in the Penal Code, under which certain excepted classes are exempted from indictment and punishment, while the corporation may be subject to both.—*National Cotton Oil Co. v. State of Texas*, 25 S. Ct. 379, 197 U. S. 115, 49 L. Ed. 689, affirming judgment (Civ. App.) 72 S. W. 615; *Southern Cotton Oil Co. v. Same*, 25 S. Ct. 383, 197 U. S. 134, 49 L. Ed. 696.

Insurance companies doing business in Iowa cannot claim to be deprived of their rights under Const. U. S. Amend. 14, by Code Iowa 1897, § 1754, making it unlawful for them or their officers, agents, or employes to make or enter into any combination or agreement relating to the rates to be charged, the amount of commissions to be allowed agents, or the manner of transacting their business within the state, in the absence of any judicial construction of such statute as having any other than the single object to insure competition. Decree (C. C.) *Greenwich Ins. Co. v. Carroll*, 125 F. 121, reversed.—*Carroll v. Greenwich Ins. Co. of New York*, 26 S. Ct. 66, 199 U. S. 401, 50 L. Ed. 246.

Singling out the milk business in the city of New York as a proper subject for regulation does not deny the equal protection of the laws, where all milk dealers in the city are equally affected by such regulation. Judgments 67 N. E. 913, 175 N. Y. 440, 108 Am. St. Rep. 781, and 80 N. Y. S. 1108, 81 App. Div. 128, affirmed.—*People of State of New York v. Van*

De Carr, 26 S. Ct. 144, 199 U. S. 552, 50 L. Ed. 305.

Nonproducing venders of milk are not denied the equal protection of the laws guaranteed by Const. U. S. Amend. 14, because they are not given the privilege accorded to producing venders of exempting themselves from actions or penalties for violation of the provisions of the New York agricultural law to prevent the sale of adulterated milk by showing that the milk sold or offered for sale by them is in the same condition as when it left the herd of the producer. Judgment, *People v. St. John*, 70 N. E. 1104, 178 N. Y. 617, affirmed.—*St. John v. People of State of New York*, 26 S. Ct. 554, 201 U. S. 633, 50 L. Ed. 896, 5 Ann. Cas. 909.

A foreign life insurance company doing business in Missouri is not denied the equal protection of the laws by Rev. St. Mo. § 7890, which cuts off any defense by a life insurance company domestic or foreign, based upon the false and fraudulent statements in the application, unless the matter misrepresented, in the judgment of the jury, actually contributed to the death of the insured.—*Northwestern Nat. Life Ins. Co. v. Riggs*, 27 S. Ct. 126, 203 U. S. 243, 51 L. Ed. 168, 7 Ann. Cas. 1104.

The equal protection of the laws is not denied to a domestic corporation whose principal office and works are outside the state, by Acts W. Va. 1905, c. 39, requiring every foreign and nonresident domestic corporation to appoint the State Auditor to accept service of process, and exacting an annual fee of \$10 for his services.—*St. Mary's Franco-American Petroleum Co. v. State of West Virginia*, 27 S. Ct. 132, 203 U. S. 183, 51 L. Ed. 144.

The exception in favor of those engaged in the business of manufacturing or wholesale merchandising, made by Laws N. C. 1905, c. 533, § 7, enacted to prevent dealing in futures, does not make that act void, as repugnant to the equal protection of the law clause of Const. U. S. Amend. 14, where such section is interpreted by the highest state court simply as a declaration that the courts shall not so construe the act as to prevent persons thus engaged from buying and selling, for future delivery, the necessary commodities required in their ordinary business, and not as relieving them from the operation of the provisions of the first section of that act, prohibiting the carrying on of a "bucket shop" business, or from the prohibitions of Laws N. C. 1889, c. 221, concerning the making of gambling contracts for future delivery. Judgment, *State v. Gatewood* (1905) 51 S. E. 53, 138 N. C. 749, affirmed.—*Gatewood v. State of North Carolina*, 27 S. Ct. 167, 203 U. S. 531, 51 L. Ed. 305.

The lessee in possession of a race course is not denied the equal protection of the laws by a state statute under which it is compelled to recognize its own tickets of admission in the hands of persons who are not at the time under the influence of liquor, or boisterous in conduct, or of lewd or immoral character, where the statute is applicable alike to all persons, corporations, or associations conducting places of public amusement or entertainment. Judgment, *Greenberg v. Western Turf Ass'n* (1905) 82 P. 684, 148 Cal. 126, affirmed.—*Western Turf Ass'n v. Greenberg*, 27 S. Ct. 384, 204 U. S. 359, 51 L. Ed. 520.

The exemption of merchants and dealers who sell patented things in the usual course of business from the operation of Kirby's Ark. Dig. §§ 513-516, requiring a negotiable instrument taken in payment for a patented article to show on its face for what it was given or be void, does not render such statute repugnant to Const. U. S. Amend. 14, as denying the equal protection of the laws. Judgment (1906) 145 F. 344, 76 C. C. A. 218, 7 Ann. Cas. 390, re-

versed.—*Ozan Lumber Co. v. Union County Nat. Bank*, 28 S. Ct. 89, 207 U. S. 251, 52 L. Ed. 195.

Retail dealers are not denied the equal protection of the laws by Gen. St. Conn. 1902, §§ 4868, 4869, avoiding as against creditors sales by such dealers in bulk without notice of intention recorded seven days before its consummation, but such statute is a valid exercise of the police power. Judgment (1907) *Young v. Lemieux*, 65 A. 436, 79 Conn. 434, affirmed.—*Lemieux v. Young*, 29 S. Ct. 174, 211 U. S. 489, 53 L. Ed. 295.

Hotels, lodging houses, eating houses, bath-houses, physicians, masseurs, surgeons, or other medical practitioners, could be singled out by Act Ark. April 30, 1907 (Acts 1907, p. 553), as the business and professions to which should be made applicable the provisions of that statute forbidding the drumming or solicitation of business or patronage on railway trains and premises of common carriers, without making such statute invalid, as denying the equal protection of the laws to the business and professions mentioned. Judgment (1908) 108 S. W. 838, affirmed.—*Williams v. State of Arkansas*, 30 S. Ct. 493, 217 U. S. 79, 54 L. Ed. 673, 18 Ann. Cas. 865.

The Michigan sales in bulk act (Pub. Acts 1905, No. 223), avoiding, as against creditors, sales in bulk otherwise than in the regular course of business, unless an inventory is made at least five days before the sale, and the purchaser receives a list of the seller's creditors, and notifies them of the proposed sale personally, or by registered mail, at least five days before its consummation, and making a purchaser not conforming to the statute a receiver for the benefit of the seller's creditors, is a valid exercise of the police power, and does not deny the equal protection of the laws.—*Kidd, Dater & Price Co. v. Musselman Grocery Co.*, 30 S. Ct. 606, 217 U. S. 461, 54 L. Ed. 839, affirming judgment, *Musselman Grocery Co. v. Kidd, Dater & Price Co.* (1908) 115 N. W. 409, 151 Mich. 478.

The equal protection of the laws is not denied telegraph companies and the persons with whom it does business by a state statute under which, as construed by the state courts, a telegraph company cannot limit its liability for its negligent failure to deliver a telegram addressed to a person in another state, although express companies and other common carriers may by contract limit their liability in this respect.—(1910) *Western Union Telegraph Co. v. Commercial Milling Co.*, 31 S. Ct. 59, 218 U. S. 406, 54 L. Ed. 1088, 38 L. R. A. (N. S.) 220, 21 Ann. Cas. 815, affirming judgment (1908) *Commercial Milling Co. v. Western Union Telegraph Co.*, 115 N. W. 698, 151 Mich. 425.

An unconstitutional discrimination does not result from the preference of ordinary depositors over other creditors, given by a state statute creating a bank depositors' guaranty fund for the purpose of securing the full repayment of deposits in case of the insolvency of any bank contributing to the fund.—(1910) *Assaria State Bank of Assaria v. Dolley*, 31 S. Ct. 189, 219 U. S. 121, 55 L. Ed. 123, affirming decree (C. C. 1909) *Larabee v. Dolley*, 175 F. 365, which is reversed (1910) *Dolley v. Abilene Nat. Bank of Abilene, Kan.*, 179 F. 461, 102 C. C. A. 607, 32 L. R. A. (N. S.) 1065.

Unincorporated banks, and banks not having a surplus of 10 per cent., are not unconstitutionally discriminated against by excluding them from availing themselves of the privileges of a state statute creating a bank depositors' guaranty fund for the purpose of securing the full repayment of deposits in case of the insolvency of any bank contributing to the fund.—Id.

Savings banks are not unconstitutionally discriminated against by making applicable to them alone the provisions of Laws Mass. 1907, c. 340, that deposits which have remained inactive and unclaimed for thirty years, where the claimant is unknown or the depositor cannot be found, shall be paid to the treasurer and receiver general, to be held by him as trustee for the true owner or his legal representatives.—(1911) *Provident Institution for Savings in Town of Boston v. Malone*, 31 S. Ct. 661, 221 U. S. 660, 55 L. Ed. 899, 34 L. R. A. (N. S.) 1129, affirming judgment (1909) *Malone v. Provident Institution for Savings in Boston*, 86 N. E. 912, 201 Mass. 23.

Exempting national banks, and banks under the supervision of the bank commissioner, and certain loan companies, from the provisions of Laws Mass. 1908, c. 605, §§ 7, 8, making invalid against the employer assignments of, or orders for, wages to be earned in the future, unless recorded, accepted in writing by the employer, and accompanied by the written consent of the wife of the employé, does not deny the equal protection of the laws to an assignee not falling within one of the excepted classes.—(1911) *Mutual Loan Co. v. Martell*, 32 S. Ct. 74, 222 U. S. 225, 56 L. Ed. 175, Ann. Cas. 1913B, 529, affirming judgment (1909) 86 N. E. 916, 200 Mass. 482.

The exception in favor of existing contracts, contained in Laws Kan. 1907, c. 250, making it criminal to sell or deliver black powder for use in any coal mines in the state except in original sealed packages containing 12½ pounds of powder, does not make such statute repugnant to Const. U. S. Amend. 14, as denying the equal protection of the laws.—(1912) *Williams v. Walsh*, 32 S. Ct. 137, 222 U. S. 415, 56 L. Ed. 253, affirming order (1908) *Ex parte Williams*, 98 P. 777, 79 Kan. 212.

Junk dealers are not denied the equal protection of the laws by Laws N. Y. 1903, c. 326, amending Pen. Code, § 550, making it a criminal offense for a junk dealer to buy stolen materials belonging to railroad, telephone or electric light companies without diligent inquiry.—*Rosenthal v. People of State of New York*, 33 S. Ct. 27, 226 U. S. 260, 57 L. Ed. 212, Ann. Cas. 1914B, 71, affirming judgment *People v. Rosenthal*, 90 N. E. 991, 197 N. Y. 394.

A junk dealer cannot invoke the equal protection of the laws clause of the federal Constitution (Const. Amend. 14) to invalidate Laws N. Y. 1903, c. 326, amending Pen. Code, § 550, making it a criminal offense for a secondhand dealer to purchase materials belonging to a railroad, telephone or electric light company without diligent inquiry, because of failure of the Legislature to extend the provision of the act to same property owned by manufacturers of such equipment.—*Id.*

Equal protection of the laws held not denied to a vendor in an executory contract to be performed within the state for the sale of land in another state by applying, in an action for damages for refusal to perform; the provision of Laws Minn. 1897, c. 223, requiring 30 days' written notice to the vendee of an intent to cancel the contract.—*Selover, Bates & Co. v. Walsh*, 33 S. Ct. 69, 226 U. S. 112, 57 L. Ed. 146, affirming judgment *Walsh v. Selover, Bates & Co.*, 123 N. W. 291, 109 Minn. 136.

National banks are not discriminated against by the Kansas bank depositors' guaranty law of March 6, 1909 (Laws 1909, c. 61), because national banks cannot avail themselves of the scheme while they remain national banks.—*Abilene Nat. Bank v. Dolley*, 33 S. Ct. 409, 228 U. S. 1, 57 L. Ed. 707.

Milk from cows outside the city held not unconstitutionally discriminated against by ordinance prohibiting shipment into the city, unless the cows have been subjected to the tubercu-

lin test and an official statement to that effect is filed with the health officer, while regulations forbidding sale of milk from sick or diseased cows within the city contemplate inspection by the health officer and application by him of test to determine whether the animal inspected is afflicted with tuberculosis.—*Adams v. City of Milwaukee*, 33 S. Ct. 610, 228 U. S. 572, 57 L. Ed. 971, affirming judgment 129 N. W. 518, 144 Wis. 371.

Requiring the inclosure of shafts in the floors of a building in the course of construction through which a hoist is operated to lift materials, as is done by Laws Ill. 1907, p. 312, § 7, held not to deny the equal protection of the laws because not requiring other uninclosed openings in the building to be guarded, or because in section 6 it distinguishes between buildings in cities and buildings in villages, and by sections 2 and 3 between houses used for private residences and other structures, as to the strength of the supports for joists.—*Chicago Dock & Canal Co. v. Fraley*, 33 S. Ct. 715, 228 U. S. 680, 57 L. Ed. 1022, affirming judgment *Claffy v. Chicago Dock & Canal Co.*, 94 N. E. 551, 249 Ill. 210.

Permitting the sale of intoxicating liquors by druggists for medicinal and other specified purposes while forbidding its sale by merchants under Pub. Acts Mich. 1889, No. 207, § 15, does not deny the equal protection of the laws.—*Eberle v. People of State of Michigan*, 34 S. Ct. 464, 232 U. S. 700, 58 L. Ed. 803, affirming judgment *People v. Eberle*, 133 N. W. 519, 187 Mich. 477.

Exempting farmers' mutual insurance companies organized in the state and insuring only farm property, from regulation of fire insurance rates under Laws Kan. 1909, c. 152, does not deny to other insurance companies equal protection of the laws.—*German Alliance Ins. Co. v. Lewis*, 34 S. Ct. 612, 233 U. S. 389, 58 L. Ed. 1011, L. R. A. 1915C, 1189, affirming decree (C. C.) 189 F. 769.

Confining to manufacturers and vendors of articles the prohibitions of Rev. St. Mo. 1909, § 10301, and Rev. St. 1899, § 8966, against combinations to lessen competition and regulate prices, while permitting such combinations among purchasers, does not deny the equal protection of the laws, within Const. U. S. Amend. 14.—*International Harvester Co. v. State of Missouri ex inf. Attorney General*, 34 S. Ct. 859, 234 U. S. 199, 58 L. Ed. 1276, 52 L. R. A. (N. S.) 525, affirming judgment *State ex inf. Mayor v. International Harvester Co. of America*, 141 S. W. 672, 237 Mo. 369.

Excluding combinations of wage-earners from statutory prohibitions against combinations to lessen competition and regulate prices, as is done by Rev. St. Mo. 1909, § 10301, and Rev. St. 1899, § 8966, does not render such legislation repugnant to Const. U. S. Amend. 14, as denying the equal protection of the laws.—*Id.*

A foreign insurance company having less than one-fourth of its reserve on South Carolina policies invested in South Carolina securities is not denied equal protection of laws, contrary to Const. U. S. Amend. 14, because state insurance commissioner, under Act S. C. March 8, 1910 (26 St. at Large, p. 774) § 13, has refused to accept bond of surety company unless it invests one-fourth of its reserve on South Carolina policies in South Carolina securities.—*State of South Carolina ex rel. Phoenix Mut. Life Ins. Co. v. McMaster*, 35 S. Ct. 504, 237 U. S. 63, 59 L. Ed. 839, affirming judgment *State ex rel. Phoenix Mut. Life Ins. Co. v. Same*, 77 S. E. 401, 94 S. C. 379.

An ordinance passed under authority of the Legislature, making it unlawful to conduct a livery stable within a designated area, does not infringe on rights granted by the fourteenth amendment to the federal Constitution.—*Rein-*

man v. City of Little Rock, 35 S. Ct. 511, 237 U. S. 171, 59 L. Ed. 900, affirming judgment City of Little Rock v. Reinman, 155 S. W. 106, 107 Ark. 174.

Requiring from officers of corporation an affidavit setting forth nonparticipation in trust combinations, under Rev. St. Mo. § 10322, does not deny equal protection of the laws because individuals, partnerships, and associations are not required to make such affidavits.—Mallinckrodt Chemical Works v. State of Missouri ex rel. Jones, 35 S. Ct. 671, 238 U. S. 41, 59 L. Ed. 1192, affirming judgment State ex rel. Jones v. Mallinckrodt Chemical Works, 156 S. W. 967, 249 Mo. 702.

Prohibiting by ordinance manufacture of brick within a designated area does not deny equal protection of the laws to owner of a brickyard within the prohibited district, where brickyards in other localities in the city are not shown to be regulated or prohibited.—Hadacheck v. Sebastian, 36 S. Ct. 143, 230 U. S. 394, 60 L. Ed. 348, affirming judgment Ex parte Hadacheck, 132 P. 584, 165 Cal. 416.

Singling out hotels having more than 50 rooms as proper subjects for regulation of duty of hotel keepers towards guests in case of fire, as is done by Rev. St. Neb. 1913, § 3104, does not deny the innkeeper equal protection of the laws.—Miller v. Strahl, 36 S. Ct. 147, 239 U. S. 426, 60 L. Ed. 364, affirming judgment Strahl v. Miller, 151 N. W. 952, 97 Neb. 820.

Laws N. D. 1911, p. 355, singling out lard from other food products, and requiring sales thereof not in bulk to be put up in packages of specified weights, is not repugnant to Const. Amend. 14, as denying equal protection.—Armour & Co. v. State of North Dakota, 36 S. Ct. 440, 240 U. S. 510, 60 L. Ed. 771, affirming judgment State v. Armour & Co., 145 N. W. 1033, 27 N. D. 177.

Definition of business of "sugar refiner" by Act La. No. 10, of 1915, § 15, which subjects to drastic regulation such business, renders statute violative of equal protection of the laws clause of Const. U. S. Amend. 14.—McFarland v. American Sugar Refining Co., 36 S. Ct. 498, 241 U. S. 79, 60 L. Ed. 899, affirming decree (D. C.) American Sugar Refining Co. v. McFarland, 229 F. 284.

←241. Regulation of operation of railroads and other carriers.

See 10 Cent. Dig. Const. Law, §§ 700, 701.

Gen. St. S. C. 1882, c. 40, providing that the entire expenses of the railroad commission shall be borne by the several corporations owning or operating railroads within the state, is not in conflict with Const. U. S. Amend. 14, securing to every person the equal protection of the law.—Charlotte, C. & A. R. Co. v. Gibbs, 142 U. S. 386, 12 S. Ct. 255, 35 L. Ed. 1051, affirming judgment 27 S. C. 385, 4 S. E. 49.

Pub. Acts Conn. 1889, c. 220, authorizing the railroad commissioners to order any railroad company, if in their opinion its financial condition will warrant, to remove a dangerous grade crossing, and allowing the entire expense to be imposed, in particular instances, on the railroad company, does not deny to it the equal protection of the laws, since the statute is applicable to all railroad corporations alike.—New York & N. E. R. Co. v. Town of Bristol, 151 U. S. 556, 14 S. Ct. 437, 38 L. Ed. 269, affirming judgment 62 Conn. 527, 26 Atl. 122.

A state statute forbidding the heating of passenger cars by stoves, on railroads of over 60 miles in length (Laws N. Y. 1887, c. 616), is not such a discrimination against roads of greater length as to amount to a denial of the equal protection of the laws.—New York, N. H.

& H. R. Co. v. People of the State of New York, 17 S. Ct. 418, 165 U. S. 628, 41 L. Ed. 853.

Where several railroad companies were using tracks passing under a viaduct in a city, some of them being lessees of the others under agreements the terms of which are not disclosed, it cannot be said that a statute and ordinances pursuant thereto imposing on the lessor companies the entire burden of keeping the viaduct in repair are a denial of the equal protection of the laws.—Chicago, B. & Q. R. Co. v. State of Nebraska, 18 S. Ct. 513, 170 U. S. 57, 42 L. Ed. 948.

An exception of a dummy railroad operated by steam, or of an electric railroad, from an ordinance limiting the speed of railroad trains within a city, does not make an arbitrary and unreasonable classification in denial of the equal protection of the laws. Judgment, 56 P. 133, 60 Kan. 251, affirmed.—Erb v. Morasch, 20 S. Ct. 819, 177 U. S. 584, 44 L. Ed. 897.

Equal protection of the law is not denied a street railway company by an order of the commissioner of railroads, made and issued under Pub. Acts Mich. 1893, No. 171, § 5, requiring such street railway company to pay one-half of the expense of constructing and maintaining safety appliances at a grade crossing of a steam railroad, which was not built until after the street railway has been constructed. Judgment, Detroit, Ft. W. & B. I. Ry. v. Commissioner of Railroads, 86 N. W. 842, 127 Mich. 219, 8 Detroit Leg. N. 343, 62 L. R. A. 149, affirmed.—Detroit, Ft. W. & B. I. Ry. v. Osborn, 23 S. Ct. 540, 189 U. S. 383, 47 L. Ed. 860.

An order of the North Carolina Corporation Commission, requiring the Atlantic Coast Line Railroad Company to restore the connection at Selma with a train of the Southern Railroad Company, which afforded the principal means of travel between the eastern and western parts of the state, is not so arbitrary and unreasonable as to amount to a deprivation of the equal protection of the laws, if other connections are inadequate for the public conveyance, although compliance with the order may necessitate operating an extra train at a loss or extending with like result the run of the local train, so long as the income of the railroad company from its business in the state affords adequate remuneration. Judgment, North Carolina Corp. Commission v. Atlantic Coast Line R. Co. (1904) 49 S. E. 191, 137 N. C. 1, affirmed.—Atlantic Coast Line R. Co. v. North Carolina Corp. Commission, 27 S. Ct. 585, 206 U. S. 1, 51 L. Ed. 933, 11 Ann. Cas. 398.

The exclusion of railroads less than 50 miles in length from the operation of Laws Ark. 1907, No. 116, prescribing a minimum of 3 brakemen for freight trains of more than 25 cars, does not deny to other railroads the equal protection of the laws.—(1911) Chicago, R. I. & P. Ry. Co. v. State of Arkansas, 31 S. Ct. 275, 219 U. S. 453, 55 L. Ed. 290, affirming judgment (1908) 111 S. W. 456, 86 Ark. 412.

The equal protection of the laws under Const. U. S. Amend. 14, is not denied to a carrier by an order of a state railroad commission requiring it to accept, without unloading, reshipments of coal in car load lots tendered in cars of other railway carriers.—Chicago, M. & St. P. Ry. Co. v. State of Iowa, 34 S. Ct. 592, 233 U. S. 334, 58 L. Ed. 988, affirming judgment State v. Chicago, M. & St. P. Ry. Co., 130 N. W. 802, 152 Iowa, 317.

The equal protection of the laws clause of Const. U. S. Amend. 14, is not infringed by Pub. Laws Ga. 1908, pp. 50, 51, requiring locomotives on the main line to be equipped with electric headlights, because the act may not

apply to receivers operating railways.—Atlantic Coast Line R. Co. v. State of Georgia, 34 S. Ct. 829, 234 U. S. 280, 58 L. Ed. 1312, affirming judgment 69 S. E. 725, 135 Ga. 545, 32 L. R. A. (N. S.) 20.

Exceptions in favor of tram roads, mill roads, and roads engaged in transporting lumber or logging, in connection with mills, made by Pub. Laws Ga. 1908, pp. 50, 51, requiring railway locomotives on the main line to be equipped with electric headlights, do not render the statute repugnant to Const U. S. Amend. 14.—Id.

Equal protection of the laws is not denied by Laws Mo. 1907, p. 169, amending Rev. St. 1899, § 1110, requiring openings in rights of way to take care of surface water.—Chicago & A. R. Co. v. Tranbarger, 35 S. Ct. 678, 238 U. S. 67, 59 L. Ed. 1204, affirming judgment Tranbarger v. Chicago & A. R. Co., 156 S. W. 694, 250 Mo. 46.

A state statute forbidding the switching of cars over public crossings in cities of the first and second class with less than a specified number of employes is not violative of the equal protection clause of Const. Amend. 14, in that it exempts railways less than 100 miles in length.—St. Louis, I. M. & S. Ry. Co. v. State of Arkansas, 36 S. Ct. 443, 240 U. S. 518, 60 L. Ed. 776, affirming judgment 170 S. W. 580, 114 Ark. 486.

242. Regulation of charges or prices.
See 10 Cent. Dig. Const. Law, § 691.

Act Miss. March 11, 1884, establishing a commission charged with the duty of supervising railroads and authorized it to fix maximum rates for transportation, is not unconstitutional, as depriving a railroad company of the equal protection of the laws.—Stone v. Farmers' Loan & Trust Co., 116 U. S. 307, 6 S. Ct. 334, 388, 1191, 29 L. Ed. 636.

Under Const. Ark. art. 17, § 10, giving the legislature the power to regulate fares and freights, a classification, by the legislature, of railroad rates in proportion to the length of the line of the road, if applied equally to all roads of the same class, does not violate the constitutional provision securing to all the equal protection of the laws.—Dow v. Beidelman, 125 U. S. 680, 8 S. Ct. 1028, 31 L. Ed. 841, affirming judgment 49 Ark. 325, 5 S. W. 297.

Laws N. Y. 1888, c. 581, fixes a maximum charge of five-eighths of a cent per bushel for elevating, receiving, weighing, and discharging grain, by means of floating or stationary elevators, in any city of the state containing a population of 130,000 or over. Held, that the fact that the operation of the act is limited to cities having a population of 130,000 or over does not render it unconstitutional, as denying the equal protection of the laws.—Budd v. People of State of New York, 143 U. S. 517, 12 S. Ct. 468, 36 L. Ed. 247.

Laws N. D. 1891, c. 126, regulating public warehouses, prescribing maximum rates of charges for storing and handling grain therein, and requiring the grain stored to be insured at the expense of the warehouseman, is not a denial of the equal protection of the laws, even though applied to an elevator owner whose principal business is storing his own grain, the storage of grain for others being a mere incident in his business.—Brass v. State of North Dakota, 153 U. S. 391, 14 S. Ct. 857, 38 L. Ed. 757, affirming judgment State v. Brass, 2 N. D. 482, 52 N. W. 408.

A statute reducing the tolls charged by a turnpike company below those prescribed by general statute for other turnpike companies in the state does not necessarily deny to it the equal protection of the laws.—Covington & L. Turnpike Road Co. v. Sandford, 17 S. Ct. 198, 164 U. S. 578, 41 L. Ed. 560.

The Nebraska law of April 12, 1893, to regulate railroads and fix maximum freight rates, is void as to the particular rates prescribed, as denying to the companies the equal protection of the laws.—Smyth v. Ames, 18 S. Ct. 418, 169 U. S. 466, 42 L. Ed. 819, affirming decree Ames v. Union Pac. Ry. Co. (C. C.) 64 F. 165.

A stock-yards company is denied the equal protection of the laws by Act Kan. March 3, 1897, which limits the amount of the charges to be made by that corporation, without limiting the charges to be made by other similar corporations doing a smaller amount of business, and without any reference to the character or value of the services rendered, although the statute is general in its terms, and is made applicable to any corporation doing business of a certain amount, and notwithstanding the fact that by virtue of the great amount of business done by the corporation affected by the statute it may make a reasonable income, since the statute makes a positive and direct discrimination between persons engaged in the same class of business, and bases it simply upon the quantity of business which each may do. Decree (C. C.) Cotting v. Kansas City Stockyards Co., 82 F. 850, reversed.—Cotting v. Godard, 22 S. Ct. 30, 183 U. S. 79, 46 L. Ed. 92.

The equal protection of the laws is not denied to a railroad company by Const. Ky. § 218, and Gen. St. Ky. 1894, § 820, which prohibit the companies from charging more for a shorter than for a longer haul, except by permission of the railroad commission in special cases after investigation. Judgment 51 S. W. 164, 1012, 106 Ky. 633, 21 Ky. Law Rep. 232, 90 Am. St. Rep. 236, affirmed.—Louisville & N. R. Co. v. Commonwealth of Kentucky, 22 S. Ct. 95, 183 U. S. 503, 46 L. Ed. 298.

The reduction of water rates by a board of supervisors, acting under the authority of St. Cal. 1885, p. 95, § 5, so as to give an annual income of 6 per cent. on the then value of the property of the water company, used in supplying water to the public, does not necessarily amount to a denial of equal protection of the laws. Judgment (C. C.) San Joaquin & Kings River Canal & Irrigation Co. v. Stanislaus County, 113 F. 930, reversed.—Stanislaus County v. San Joaquin & King's River Canal & Irrigation Co., 24 S. Ct. 241, 192 U. S. 201, 48 L. Ed. 406.

Municipal regulation of the rates which a telephone company may charge, on a lower scale than those prescribed for a competitor, does not necessarily deny the equal protection of the laws, since such competitor may bring its patrons into communication with a larger number of persons, dwelling in a more widely-extended territory, and may render much more valuable service. Decree (C. C. 1907) 155 F. 554, affirmed.—Home Telephone & Telegraph Co. v. City of Los Angeles, 29 S. Ct. 50, 211 U. S. 265, 53 L. Ed. 176.

The exemption of banks or trust companies and bona fide mortgages from the operation of Conn. Pub. Acts 1907, c. 238, prohibiting the exacting of more than 15 per cent. interest on loans, or accepting a note for a greater amount than that actually loaned, with intent to evade this provision, does not render such statute repugnant to the equal protection of the laws clause of the federal Constitution, but such classification has a reasonable basis.—Griffith v. State of Connecticut, 31 S. Ct. 132, 218 U. S. 563, 54 L. Ed. 1151; Id., 31 S. Ct. 134, 218 U. S. 572, 54 L. Ed. 1155. Affirming judgment State v. Griffith, 74 A. 1063, 83 Conn. 1.

Punishing the selling of goods at a lower rate at one place than in another, to destroy competition, as provided by Laws S. D. 1907, c. 131, does not deny the equal protection of the

laws.—*Central Lumber Co. v. State of South Dakota*, 33 S. Ct. 66, 226 U. S. 157, 57 L. Ed. 164, affirming judgment *State v. Central Lumber Co.*, 123 N. W. 504, 24 S. D. 136.

The exemption of any railroad in the state under 50 miles in length, not under the control of any other railroad over 50 miles in length, operated wholly or in part in the state, from the operation of Laws W. Va. 1907, c. 41 (Code Supp. 1909, c. 54, §§ 2496a1, 2496a2), fixing maximum rate for passengers at two cents per mile does not deny equal protection of the laws, where, as construed by the state courts, a railway under 50 miles in length controlled by a railway of greater length will be taken out of the exception when operated with a longer line.—*Chesapeake & O. R. Co. v. Conley*, 33 S. Ct. 985, 230 U. S. 513, 57 L. Ed. 1597.

The exception in favor of electric lines and street railways made by Laws W. Va. 1907, c. 41 (Code Supp. 1909, c. 54, §§ 2496a1, 2496a2), fixing maximum rates at two cents per mile, does not deny equal protection of the laws.—*Id.*

243. Creation or discharge of liability in general.

See 10 Cent. Dig. Const. Law, § 702.

Act Kan. 1874, providing that every railroad company shall be liable to its employees for injuries caused by mismanagement of its engineers or other employees, does not deny to a railroad company the equal protection of the laws.—*Missouri Pac. Ry. Co. v. Mackey*, 127 U. S. 205, 8 S. Ct. 1161, 32 L. Ed. 107; *Minneapolis & St. L. Ry. Co. v. Herrick*, 127 U. S. 210, 8 S. Ct. 1176, 32 L. Ed. 109.

Code Iowa, § 1289, provides that any railway company that fails to fence its road, where the right to fence exists, shall be liable for the value of stock killed or injured by reason of the want of such fence, unless it was caused by the willful act of the owner; and that, if the company neglects to pay within 30 days after notice, the owner may recover double the value. *Held*, that the statute is not a denial of the equal protection of the law within the meaning of Const. U. S. Amend. 14, as that clause only requires that legislation shall treat alike all persons brought under subjection to it.—*Minneapolis & St. L. Ry. Co. v. Beckwith*, 129 U. S. 26, 9 S. Ct. 207, 32 L. Ed. 585.

A state statute, which, as construed by the courts of the state, gives damages to a landowner for the expense and inconveniences of watching cattle to keep them from going upon a railroad track running through his land, which the company has failed to fence (Gen. Laws Minn. 1877, c. 73), is within the police power of the state, and is not subject to the inhibition of the fourteenth amendment to the federal Constitution, against depriving any person of the equal protection of the laws, even though, by the general law of the state, penalties and damages are given only for direct injuries sought to be prevented, and do not extend to consequential and possible resulting injuries.—*Minneapolis & St. L. Ry. Co. v. Emmons*, 149 U. S. 364, 13 S. Ct. 870, 37 L. Ed. 769; *Same v. Nelson*, 149 U. S. 368, 13 S. Ct. 871, 37 L. Ed. 772.

Restricting railway mail clerks and others whose employment in and about a railroad subjects them to greater peril than passengers in the strict sense to such right of action against the railway company for injuries received in the course of their employment as a railway employee would have under like circumstances is a reasonable classification, which sustains the provision of Act Pa. April 4, 1893, making it, as against the objection that such statute denies the equal protection of the laws. Judgment (1905) 76 N. E. 1129, 72 Ohio St. 659, affirmed.—*Martin v. Pittsburg & L. E. R. Co.*, 27 S. Ct.

100, 203 U. S. 284, 51 L. Ed. 184, 8 Ann. Cas. 87.

245. Imposition of liability for personal injuries.

See 10 Cent. Dig. Const. Law, § 702.

A statute making a railroad company liable to an employee injured by the negligent act of a fellow servant is not unconstitutional as a denial to such corporation of the equal protection of the laws, since there are peculiar hazards in the operation of a railroad.—*Tullis v. Lake Erie & W. R. Co.*, 20 S. Ct. 136, 175 U. S. 348, 44 L. Ed. 192.

Rev. St. 1899, § 2873, providing that every railroad corporation shall be liable for all damages sustained by any servant while engaged in the work of operating such road by reason of the negligence of any other agent or servant thereof, construed as including all servants whose work is directly necessary for the running of trains over the track, is not unconstitutional, as subjecting railroad companies to a liability to their employees not imposed on other persons or companies under similar conditions. Judgment, *Callahan v. St. Louis Merchants' Bridge Terminal Ry. Co.*, 71 S. W. 208, 170 Mo. 473, 60 L. R. A. 249, 94 Am. St. Rep. 746, affirmed.—*St. Louis Merchants' Bridge Terminal Ry. Co. v. Callahan*, 24 S. Ct. 857, 194 U. S. 628, 48 L. Ed. 1157.

The equal protection of the laws is not denied by construing the proviso excepting cases of injuries sustained by railway employees "while engaged in the construction of a new road or any part thereof not open to public travel or use," from the provisions of Gen. St. Minn. 1894, § 2701, abrogating the fellow-servant rule, as only exempting incomplete railroads, and therefore as not excepting from the operation of the statute an accident on a narrow-gauge track on which dump cars were run by a mining company for the purpose of stripping the earth from the surface of its mine. Judgment, *Kline v. Minnesota Iron Co.*, 100 N. W. 681, 93 Minn. 63, affirmed.—*Minnesota Iron Co. v. Kline*, 26 S. Ct. 159, 199 U. S. 593, 50 L. Ed. 322.

The selection of mineowners as a class upon which to impose responsibility for the defaults of certain employees who are required by Mining Act Ill. April 18, 1899 (Laws 1899, p. 300), to be selected from those holding licenses issued by the state mining board created by that act, does not render such legislation repugnant to Const. U. S. Amend. 14, as denying the equal protection of the laws.—*Wilmington Star Min. Co. v. Fulton*, 27 S. Ct. 412, 205 U. S. 60, 51 L. Ed. 708.

The modification of the fellow-servant rule as to railway employees, made by Act Ind. March 4, 1893 (Acts 1893, c. 130) § 1, does not offend against the equal protection of the laws clause of the federal Constitution because construed as applying to all employees doing work essential to enable the carrying on of railway operations, and not as limited to those engaged in or about the movement of trains, but such general classification of railway employees is a proper exercise of the police power.—*Louisville & N. R. Co. v. Melton*, 30 S. Ct. 676, 218 U. S. 36, 54 L. Ed. 921, 47 L. R. A. (N. S.) 84, affirming judgment 105 S. W. 366, 127 Ky. 276.

The abrogation of the fellow-servant rule as to railway employees, made by Code Miss. 1892, § 3559, does not offend against the equal protection of the laws clause of the federal Constitution because construed as applying to the foreman of a section crew charged with keeping the track in repair.—(1910) *Mobile, J. & K. C. R. Co. v. Turnipseed*, 31 S. Ct. 136, 219 U. S. 35, 55 L. Ed. 78, 32 L. R. A. (N. S.)

S.) 226, Ann. Cas. 1912A, 463, affirming judgment *Same v. Hicks* (1908) 46 So. 360, 91 Miss. 273, 124 Am. St. Rep. 679.

An unconstitutional discrimination is not made by amending Code Iowa, § 2071, which defined the liability of railway corporations for injuries resulting from negligence or mismanagement in the use and operation of their railways, so that a railway company, when sued on such liability, may not raise the defense that a recovery is barred by the acceptance of benefits under a contract of membership in its relief department, although this provision of the amendatory act applies only to those employees who were embraced within the provisions of the original statute, and to the enforcement of the particular liabilities which that statute defined, and the benefits of such statute were confined to those engaged in the hazardous business of operating railroads.—(1911) *Chicago, B. & Q. R. Co. v. McGuire*, 31 S. Ct. 259, 219 U. S. 549, 55 L. Ed. 328, affirming judgment *McGuire v. Chicago, B. & Q. R. Co.* (1908) 116 N. W. 801, 138 Iowa, 664.

Abolishing the fellow-servant rule as to corporations operating railroads within the state, as is done by Act Ark. March 8, 1907, p. 162, does not deny such a corporation the equal protection of the laws because the statute does not apply to individual employers.—(1911) *Aluminum Co. of America v. Ramsey*, 32 S. Ct. 76, 222 U. S. 251, 56 L. Ed. 185, affirming judgment (1909) 117 S. W. 568, 89 Ark. 522.

Railway companies are not denied the equal protection of the laws, by Comp. St. Neb. 1911, c. 21, § 4, under which contributory negligence of an injured train employee will not bar recovery, where it was slight and that of the company gross.—*Missouri Pac. R. Co. v. Castle*, 32 S. Ct. 606, 224 U. S. 541, 56 L. Ed. 875.

The modification of the fellow-servant rule as to railway employees made by Laws Ind. 1893, c. 130, held not in contravention of the equal protection of the laws clause of Const. U. S. Amend. 14, because applying to any railway employee, where the highest courts of the state exclude employees not engaged in some service subject to the hazards incident to the movement of trains.—*Chicago, I. & L. R. Co. v. Hackett*, 33 S. Ct. 581, 228 U. S. 559, 57 L. Ed. 966, affirming judgment *Hackett v. Chicago, I. & L. R. Co.*, 170 Ill. App. 140.

Employers having five or more employees are not denied equal protection of the laws, because their failure to comply with Ohio Workmen's Compensation Act (Page & A. Gen. Code, § 1465—37 et seq.), by payments into a state insurance fund, deprives them in negligence suits of defenses of contributory negligence, assumed risk, and negligence of fellow servants, while those employing four or less employees can make either of these defenses.—*Jeffrey Mfg. Co. v. Blagg*, 35 S. Ct. 167, 235 U. S. 571, 59 L. Ed. 364.

Equal protection of the laws is not denied by construing Laws Wash. 1911, c. 74, as taking away under Rem. & Bal. Code, §§ 183, 194, the right to maintain action for wrongful death of an employee.—*Northern Pac. Ry. Co. v. Meese*, 36 S. Ct. 223, 239 U. S. 614, 60 L. Ed. 467, reversing judgment *Meese v. Northern Pac. Ry. Co.*, 211 F. 254, 127 C. C. A. 622.

246. Imposition of liability for injuries to property rights.

See 10 Cent. Dig. Const. Law, §§ 702, 709.

A statute making each company owning or operating a railroad within the state liable for property destroyed by fire from its locomotives does not deny to such companies the equal protection of the laws.—*St. Louis & S. F. R. Co. v. Mathews*, 17 S. Ct. 243, 165 U. S. 1, 41 L. Ed. 611.

A city is not denied the equal protection of the laws by Laws Ill. 1887, p. 237, imposing upon it a liability for damage to property within its limits, caused by a mob or riot, because, when property damaged under like circumstances is situated in a village or other incorporated town, the liability is imposed upon the county instead of upon such village or town.—*City of Chicago v. Sturges*, 32 S. Ct. 92, 222 U. S. 313, 56 L. Ed. 215, Ann. Cas. 1913B, 1349, affirming judgment *Sturges v. City of Chicago*, 86 N. E. 683, 237 Ill. 46.

247. Imposition of penalty or forfeiture.

See 10 Cent. Dig. Const. Law, § 703.

A statute providing that a railroad company failing to keep its track fenced as specified shall be liable in double the amount of all damages occasioned by injuries to stock going on the track, because of defects in the fences, cattle guards, etc., is not unconstitutional, as depriving the company of the equal protection of the laws.—*Missouri Pac. Ry. Co. v. Humes*, 115 U. S. 512, 6 S. Ct. 110, 29 L. Ed. 463; *Same v. Terry*, 115 U. S. 523, 6 S. Ct. 114, 29 L. Ed. 467.

Code Iowa, § 1289, authorizing a recovery against a railroad company of double the value of stock killed through the company's failure to fence as required by statute, where it fails to pay 30 days after notice of loss, is not a denial of equal protection of the law, within Const. U. S. Amend. 14.—*Minneapolis & St. L. Ry. Co. v. Beckwith*, 129 U. S. 26, 9 S. Ct. 207, 32 L. Ed. 585.

The Texas statute, authorizing the recovery of damages and attorney's fees for failure by life and health insurance companies to pay losses, is not repugnant to the guaranty of the equal protection of the laws, made by the federal constitution.—*Fidelity Mut. Life Ass'n v. Mettler*, 22 S. Ct. 662, 185 U. S. 308, 46 L. Ed. 922; *Iowa Life Ins. Co. v. Lewis*, 23 S. Ct. 126, 187 U. S. 335, 47 L. Ed. 204.

The imposition upon railway companies alone, by St. Tex. 1901, c. 117, of the penalty therein given to contiguous landowners for allowing Johnson grass or Russian thistle to mature and go to seed, does not deny such railway companies the equal protection of the laws.—*Missouri, K. & T. Ry. Co. of Texas v. May*, 24 S. Ct. 638, 194 U. S. 267, 48 L. Ed. 971.

Common carriers are not denied the equal protection guaranteed by Const. U. S. Amend. 14, by the provisions of Act S. C. Feb. 23, 1903, p. 81, § 2, requiring them to adjust and pay every claim for loss or damage to an intrastate shipment within 40 days after the filing of a claim, under penalty of \$50 for each failure or refusal, where there can be no award of a penalty under the statute unless there is a recovery of the full amount claimed. Judgment, *Seegers Bros. v. Seaboard Air Line Ry.* (1905) 52 S. E. 797, 73 S. C. 71, affirmed.—*Seaboard Air Line Ry. v. Seegers*, 28 S. Ct. 28, 207 U. S. 73, 52 L. Ed. 108.

A statute providing for the establishment of rates for railroad transportation without giving the corporation an opportunity to be heard, which fixes penalties for disobedience of its provisions by fines so enormous and imprisonment so severe as to intimidate the corporations and their officers from resorting to the courts to test the validity of the rates, is unconstitutional, as depriving the corporations of the equal protection of the laws.—*Ex parte Young*, 28 S. Ct. 441, 209 U. S. 123, 52 L. Ed. 714, 13 L. R. A. (N. S.) 932, 14 Ann. Cas. 764.

The possible invalidity as to individuals of the provisions of Act Ark. Jan. 23, 1905 (Acts 1905, p. 2) § 1, penalizing the doing of business within the state by members of a trust or combination to control prices, does not ren-

der such provisions invalid as to corporations, as denying the equal protection of the laws. Judgment (1907) 100 S. W. 407, 81 Ark. 519, affirmed.—*Hammond Packing Co. v. State of Arkansas*, 29 S. Ct. 370, 212 U. S. 322, 53 L. Ed. 530, 15 Ann. Cas. 645.

An insurance company connected with a tariff association which fixes rates is not denied the equal protection of the laws by Code Ala. 1896, §§ 2619, 2620, under which the insured or beneficiary in a policy issued by such company may recover, in addition to the actual loss or damage, 25 per cent. of the amount of such actual loss or damage, since such statute places upon an equality in every respect all insurers which, at the time of issuing the insurance, or subsequently, and before trial, were in any way connected with any other persons, associations, or corporations which acted together in fixing insurance rates.—*German Alliance Ins. Co. v. Hale*, 31 S. Ct. 246, 219 U. S. 307, 55 L. Ed. 229.

A foreign corporation ousted and fined in quo warranto proceedings in the highest court of the state for misuser of its license was not denied equal protection of the laws because corporations prosecuted in inferior courts are entitled to trial by jury and can be subjected only to fine of \$100 per day while the combination continued.—(1912) *Standard Oil Co. of Indiana v. State of Missouri ex inf. Hadley*, 32 S. Ct. 406, 224 U. S. 270, 56 L. Ed. 760, Ann. Cas. 1913D, 936, affirming judgment *State ex inf. Hadley v. Standard Oil Co.*, 116 S. W. 902, 218 Mo. 1.

Equal protection of the laws is not denied to a carrier by imposition, under Laws Miss. 1908, c. 196, of a penalty for failure to settle a claim for damages to an intrastate shipment within 60 days from the notice of the claim.—*Yazoo & Mississippi Val. R. Co. v. Jackson Vinegar Co.*, 33 S. Ct. 40, 226 U. S. 217, 57 L. Ed. 193.

An ordinance of a town by which owners of property abutting on any street along which sewer mains have been laid were required to connect with the main sewer under penalty does not deny equal protection of the laws.—*Hutchinson v. City of Valdosta*, 33 S. Ct. 290, 227 U. S. 308, 57 L. Ed. 520.

Singling out railway companies and subjecting them to double damages and attorneys' fees on refusal to pay for killing live stock within 30 days after demand, as is done by Laws Ark. 1907, p. 144, when litigants in general are not subject to the same burdens, does not deprive railway companies of the equal protection of the laws.—*Kansas City Southern Ry. Co. v. Anderson*, 34 S. Ct. 599, 233 U. S. 325, 58 L. Ed. 983, affirming judgment 149 S. W. 58, 104 Ark. 500.

A state statute imposing enormous penalties for violating orders of state railroad commission held violative of Const. U. S. Amend. 14, as denying equal protection of the laws though full hearing is accorded where resort to the courts may be had only at great risk.—*Wadley Southern Ry. Co. v. State of Georgia*, 35 S. Ct. 214, 235 U. S. 651, 59 L. Ed. 405, affirming judgment 73 S. E. 741, 137 Ga. 497.

Penalty of \$5,000 per day for violating orders of state railroad commission imposed by Civ. Code Ga. 1910, § 2667, does not deny equal protection of the laws contrary to Const. U. S. Amend. 14, where judicial review is accorded by Civ. Code Ga. 1910, § 2625.—*Id.*

Carrier failing to resort to remedy accorded by Civ. Code Ga. 1910, § 2625, for relief against order of railroad commission, but attacking validity of order when sued under section 2607, held not denied equal protection of the laws by

being compelled to pay the penalties imposed.—*Id.*

A penalty of from \$300 to \$600, imposed by the so-called Ohio "run-of-mine" or "anti-screen" law, for each separate violation of the act, is not so great as to render the statute a violation of the equal protection of the laws under Const. U. S. Amend. 14, by preventing resort to the courts to test constitutionality of the law.—*Rail & River Coal Co. v. Yapple*, 35 S. Ct. 359, 236 U. S. 338, 59 L. Ed. 607, affirming decree (D. C.) 214 F. 273.

Penalties prescribed by Laws Fla. 1913, c. 6421, § 35, for selling merchandise accompanied by coupons, etc., redeemable in premiums, without payment of license fee, held not so severe as to deny the equal protection of the laws by intimidating against a contest of the validity of the statute.—*Rast v. Van Deman & Lewis Co.*, 36 S. Ct. 370, 240 U. S. 342, 60 L. Ed. 679, reversing order *Van Deman & Lewis Co. v. Rast*, 214 F. 827; *Pitney v. State of Washington*, 36 S. Ct. 385, 240 U. S. 387, 60 L. Ed. 703, affirming judgment *State v. Pitney*, 141 P. 883, 80 Wash. 699.

4248. Imposition of liability for costs or fees.

See 10 Cent. Dig. Const. Law, § 703.

Gen. St. Kan. 1889, c. 82, § 326, providing that, when a prosecution was malicious, the prosecutor shall be adjudged to pay the costs, and committed to jail until they are paid, is applicable to all persons under like circumstances, and does not subject the individual to an arbitrary exercise of power, and hence does not deny him the equal protection of the laws.—*Lowe v. State of Kansas*, 163 U. S. 81, 16 S. Ct. 1031, 41 L. Ed. 78.

Act Tex. April 5, 1889, providing that railroad companies failing to pay claims less than \$50 for labor, damages, overcharges on freight, or for stock killed, within 30 days after presentation thereof, shall be liable for an attorney's fee not exceeding \$10, is void as depriving such companies of the equal protection of the law.—*Gulf, C. & S. F. Ry. Co. v. Ellis*, 17 S. Ct. 255, 165 U. S. 150, 41 L. Ed. 666.

The provision of the Kansas statute (Sess. Laws 1885, p. 258, c. 155, §§ 1, 2), requiring a reasonable attorney's fee for the plaintiff to be allowed and made a part of the judgment on a recovery against a railroad company for damages from fire caused by the operating of its trains, is in the nature of a police regulation, designed to enforce care on the part of railroad companies to prevent the escape of fire from their moving trains, which subjects the property of adjacent owners to peculiar hazard, and has a reasonable relation to the object sought to be accomplished, although the statute imposes no specific duty by way of precaution; and the provision is not in violation of the fourteenth constitutional amendment, as an arbitrary classification of suitors, which deprives those affected of the equal protection of the laws.—*Atchison, T. & S. F. R. Co. v. Matthews*, 19 S. Ct. 609, 174 U. S. 96, 43 L. Ed. 909.

The equal protection of the laws is not denied insurance companies by the provisions of Comp. St. Neb. c. 43, §§ 43-45, allowing a reasonable attorney's fee to plaintiff in case of the unsuccessful defense by an insurance company of a suit on a policy of insurance covering real property which has been totally destroyed by the causes insured against. Judgment, *Farmers' & Merchants' Ins. Co. v. Dabney*, 86 N. W. 1070, 62 Neb. 213, 97 Am. St. Rep. 624, affirmed.—*Farmers' & Merchants' Ins. Co. v. Dobney*, 23 S. Ct. 565, 189 U. S. 301, 47 L. Ed. 821.

There is no denial of the equal protection of the laws, contrary to Const. U. S. Amend. 14, in the provisions of Acts Tex. 31st Leg. c. 47, for allowance of reasonable attorney's fee to successful plaintiff, where attorney is actually employed on a claim not exceeding \$200 for labor done, or overcharges on freight, or claim for lost or damaged freight, as there is no classification of debtors, and the claims included are not so grouped as to bear on any class of citizens or corporations.—*Missouri, K. & T. Ry. Co. of Texas v. Cade*, 34 S. Ct. 678, 233 U. S. 642, 58 L. Ed. 1135.

That attorney's fees are allowed by Acts Tex. 31st Leg. c. 47, to successful plaintiffs only, and not to successful defendants, is not a denial of equal protection of the laws, contrary to Const. U. S. Amend. 14, if the classification is otherwise reasonable.—*Id.*

There is no denial of equal protection of the laws contrary to Const. U. S. Amend. 14, by Acts Tex. 31st Leg. c. 47, for the allowance of an attorney's fee of not over \$20 to the successful plaintiff in an action on a claim of a certain class not exceeding \$200 against persons or corporations doing business in the state, where the claim is not paid within 30 days after demand and the recovery is for the full amount claimed, as it makes no classification of debtors and the kind of claims cover a wide range.—*Missouri, K. & T. Ry. Co. of Texas v. Harris*, 34 S. Ct. 790, 234 U. S. 412, 58 L. Ed. 1377, L. R. A. 1915E, 942.

Attorneys' fees for services in mandamus proceedings may be awarded plaintiff under Gen. Stat. Kan. 1909, § 6319 (Code Civ. Proc. § 723), without denying defendant equal protection of the laws contrary to Const. Amend. 14, though no reciprocal right in case of success is given defendant.—*Missouri Pac. Ry. Co. v. Larabee*, 34 S. Ct. 979, 234 U. S. 459, 58 L. Ed. 1398, reversing judgment *Larabee Flour Mills Co. v. Missouri Pac. Ry. Co.*, 116 P. 901, 85 Kan. 214.

Equal protection of the laws is denied railway companies by Laws Kan. 1905, c. 345, under which, as amended by Laws Kan. 1907, c. 275, an attorney's fee is allowed shipper who successfully sues a railroad for failure to furnish cars, while no such allowance is made in successful action by railroad in suit under such statute against a shipper failing to use the cars.—*Atchison, T. & S. F. Ry. Co. v. Vosburg*, 35 S. Ct. 675, 238 U. S. 56, 59 L. Ed. 1199, L. R. A. 1915E, 953, reversing judgment *Vosburg v. Atchison, T. & S. F. Ry. Co.*, 130 P. 667, 89 Kan. 114.

249. Civil remedies and proceedings.

See 10 Cent. Dig. Const. Law, § 710.

The supreme court of the United States is bound by the decisions of the supreme court of Illinois that no amendments of its record in derogation of its final judgment can be made after the expiration of the term; and, as this rule is applicable to all persons in the state, its enforcement against a particular person is not a denial by the state of the equal protection of its laws.—*Fielden v. People of State of Illinois*, 143 U. S. 452, 12 S. Ct. 528, 36 L. Ed. 224, affirming judgment 128 Ill. 595, 21 N. E. 584.

The action of a state court in allowing compensation to a property owner who is shut off from free access to a street by the building of a railroad along the street, and denying damages to one whose property is depreciated by the operation of a railroad running along the opposite side of the street on the railroad's own property, does not amount to a denial of the equal protection of the laws.—*Marchant v. Pennsylvania R. Co.*, 153 U. S. 380, 14 S. Ct. 894, 38 L. Ed. 751.

The requirement, in the fourteenth amendment, of equal protection of the laws, does not secure a right of jury trial in quo warranto proceedings in a state court to suspend or

remove a state officer.—*Wilson v. State of North Carolina*, 18 S. Ct. 435, 169 U. S. 536, 42 L. Ed. 865.

Error of the trial court, if such it be, in omitting to charge in respect to one of the elements of damage, in the absence of any request therefor, is merely an error in the administration of the law, and is not one which deprives the respondents of the equal protection of the laws.—*Backus v. Fort St. Union Depot Co.*, 18 S. Ct. 445, 169 U. S. 557, 42 L. Ed. 853.

The right to the equal protection of the laws is not denied by a state court where the same course of procedure applied to the person in question would have been applied to any other person in the same state under similar circumstances.—*Tinsley v. Anderson*, 18 S. Ct. 805, 171 U. S. 101, 43 L. Ed. 91.

The provision of the Maryland constitution (article 4, § 39, as amended), authorizing the supreme bench of Baltimore city to provide, by its rules, for requiring causes in the courts of Baltimore city to be tried before the court without a jury unless the litigants, or some one of them, within a reasonable time to be prescribed, shall demand a jury trial, does not deny to litigants the equal protection of the laws, within the meaning of the fourteenth amendment to the federal constitution, though no such provision is made in respect to the courts of the other counties in the state.—*Chappell Chemical & Fertilizer Co. v. Sulphur Mines Co. of Virginia*, 19 S. Ct. 268, 172 U. S. 474, 43 L. Ed. 520.

A statute which requires plaintiff to give a bond as a prerequisite to the issuance of an attachment against a resident, but requires no bond where the attachment is against property of a nonresident, is not a denial of the equal protection of the law. Judgment 49 P. 48, 5 Okl. 396, reversed.—*Central Loan & Trust Co. v. Campbell Commission Co.*, 19 S. Ct. 346, 173 U. S. 84, 43 L. Ed. 623.

A nonresident mortgagee is not within the jurisdiction of the state merely because he has a mortgage on property therein, so as to be deprived of the equal protection of the laws in violation of Const. U. S. Amend. 14, by denying him the right to participate on terms of equality in the distribution of the assets of an insolvent foreign corporation.—*Sully v. American Nat. Bank*, 20 S. Ct. 935, 178 U. S. 289, 44 L. Ed. 1072.

A decree adjudging the charter of an alleged corporation to be void, in a suit brought against a corporation alone, without making its members parties, and enjoining the officers and stockholders from acting as a corporation, on the ground that the purpose for which it was formed is illegal, does not deny to the individual incorporators the equal protection of the laws, as a de facto corporation may be treated as such by the state and brought into court as a party defendant.—*New Orleans Debenture Redemption Co. of Louisiana v. State of Louisiana*, 21 S. Ct. 378, 180 U. S. 320, 45 L. Ed. 550.

The provision for a change of venue for local prejudice, which is made by Rev. St. Ohio, § 5030, where the opposite party is a corporation with more than 50 stockholders, having its principal office or transacting its principal business in the county in which the action is pending, without conferring an equivalent right on the corporation, does not violate the constitutional guaranty of the equal protection of the laws, where in both forums equality of law governs and equality of administration prevails. Judgment Street Ry. Co. v. Snell, 65 N. E. 1134, 66 Ohio St. 670, affirmed.—*Cincinnati St. Ry. Co. v. Snell*, 24 S. Ct. 319, 193 U. S. 30, 48 L. Ed. 604.

The remedy given by the Arkansas anti-trust act (Act Ark. Jan. 23, 1905 [Acts 1905,

p. 8] § 8), to secure the attendance of witnesses before a commission, and the production of books and papers in a proceeding under that act, does not deny the equal protection of the laws because it applies only to books and papers outside the state, or because, properly construed, it may be confined to corporations and joint-stock associations, and not extended to individuals. Judgment (1907) 100 S. W. 407, 81 Ark. 519, affirmed.—Hammond Packing Co. v. State of Arkansas, 29 S. Ct. 370, 212 U. S. 322, 53 L. Ed. 530, 15 Ann. Cas. 645.

The equal protection of the laws is not denied by Code Miss. 1906, § 1985, under which, in actions against railway companies for damage done to persons or property, proof of injury inflicted by the running of the locomotives or cars is made prima facie evidence of negligence.—(1910) Mobile, J. & K. C. R. Co. v. Turnipseed, 31 S. Ct. 136, 219 U. S. 35, 55 L. Ed. 78, 32 L. R. A. (N. S.) 226, Ann. Cas. 1912A, 463, affirming judgment Same v. Hicks (1908) 46 So. 360, 91 Miss. 273, 124 Am. St. Rep. 679.

Making the engaging in pumping mineral waters from wells bored or drilled into the rock for the purpose of collecting and vending as a separate commodity the carbonic acid gas contained therein prima facie evidence of the common underground source of supply and of injury to other proprietors, as is done by Laws N. Y. 1908, c. 429, forbidding the pumping of the waters under such conditions, does not render the statute invalid, as infringing upon the guaranty in the federal Constitution of the equal protection of the laws.—(1911) Lindsley v. Natural Carbonic Gas Co., 31 S. Ct. 337, 220 U. S. 61, 55 L. Ed. 369, Ann. Cas. 1912C, 160, affirming decree (C. C. 1909) 170 F. 1023.

Constitutional rights are not invaded by the declaration in Act June 29, 1906, § 15, that taking up a permanent residence in a foreign country within five years after issuance of certificate of citizenship shall be prima facie evidence of lack of intent to become a permanent citizen, which shall be sufficient to warrant the cancellation of the certificate as fraudulent.—Luria v. United States, 34 S. Ct. 10, 231 U. S. 9, 58 L. Ed. 101, affirming decree (D. C.) United States v. Luria, 184 F. 643.

The equal protection of the laws is not denied by confining to Spanish and Mexican grants the provision of Comp. Laws N. M. 1865, c. 73, § 1 (Comp. Laws 1897, § 2937), under which ten years' possession under a deed purporting to convey a fee simple gives title in fee to the land specified, if, during the ten years, no claim by a suit effectually prosecuted has been set up.—Montoya v. Gonzales, 34 S. Ct. 413, 232 U. S. 375, 58 L. Ed. 645, affirming judgment Same v. Unknown Heirs of Vigil, 120 P. 676, 16 N. M. 349.

An attachment by a foreign creditor of bonds of a foreign corporation for a debt of their nonresident owner does not deny the equal protection of the laws, guaranteed by Const. U. S. Amend. 14, where the bonds were deposited with a custodian under an order of the state court and could not be removed without the authority of the state court, though the bonds were registered in the names of the attachment creditor's minor children.—De Gallard de Brassac de Bearn v. Safe Deposit & Trust Co. of Baltimore, 34 S. Ct. 584, 233 U. S. 24, 58 L. Ed. 833.

The equal protection of the laws clause of Const. Amend. 14, invoked by tender of amended answers after remand to the trial court by the highest state court for a new trial, is not denied on a second appeal from the ruling of the trial court refusing to permit the filing of such amended answers, where the highest state court held that the facts on which the federal

rights were based had been concluded by the former decision in which no infraction of federal right was set up.—Louisville & N. R. Co. v. Higdon, 34 S. Ct. 948, 234 U. S. 592, 58 L. Ed. 1484, affirming judgment 148 S. W. 26, 149 Ky. 321.

A foreign corporation engaged in booking theatrical and vaudeville companies for a weekly fee and on a commission may be required to file its charter as a condition to its right to sue on a contract, and such a requirement is not a denial of the equal protection of the laws.—Interstate Amusement Co. v. Albert, 36 S. Ct. 168, 239 U. S. 560, 60 L. Ed. 439, affirming judgment 161 S. W. 488, 128 Tenn. 417.

A state cannot, consistently with equal protection of the laws (Const. Amend. 14) create, as is attempted by Act La. No. 10 of 1915, presumption of participation in forbidden monopoly by payment in the state by a refiner of a less price for sugar than he pays in any other state, or closing his refinery for more than one year.—McFarland v. American Sugar Refining Co., 36 S. Ct. 498, 241 U. S. 79, 60 L. Ed. 899, affirming decree American Sugar Refining Co. v. McFarland, 229 F. 284.

250. Criminal prosecutions.

See 10 Cent. Dig. Const. Law, §§ 711-713.

Rev. St. Mo. §§ 1900, 1902, providing that in capital cases, except in cities having a population of over 100,000 inhabitants, the state shall be allowed eight peremptory challenges to jurors, and in such cities shall be allowed fifteen, does not deprive one indicted for murder in a city of over 100,000 inhabitants of the equal protection of the laws enjoined by the fourteenth amendment to the United States constitution.—Hayes v. State of Missouri, 120 U. S. 68, 7 S. Ct. 350, 30 L. Ed. 578.

A statute allowing an accused person only five peremptory challenges in a case where a struck jury has been ordered, while twenty peremptory challenges are allowed in a trial before an ordinary jury, does not constitute a denial of the equal protection of the laws, where the same number of challenges is permitted, in all cases in which a struck jury is ordered.—Brown v. State of New Jersey, 20 S. Ct. 77, 175 U. S. 172, 44 L. Ed. 119.

The equal protection of the laws is not denied by a statute imposing a heavier penalty upon a person convicted of a felony if he has twice before been sentenced for crime to three years' imprisonment or more.—McDonald v. Commonwealth of Massachusetts, 21 S. Ct. 389, 180 U. S. 311, 45 L. Ed. 542.

The allowance of an appeal to the state from the court of one district, but not from another district, of the state, in case of the grant of a new trial to an accused person, is not a denial of the equal protection of the laws guaranteed by Const. U. S. Amend. 14. Judgment, State v. Mallett, 34 S. E. 651, 125 N. C. 718, affirmed.—Mallett v. State of North Carolina, 21 S. Ct. 730, 181 U. S. 589, 45 L. Ed. 1015.

The refusal of a state court to continue a criminal case on account of the absence of accused's witnesses, residing in another state, is not a denial of the equal protection of the laws secured by Const. U. S. Amend. art. 14, because it is not within the power of the state courts to compel the attendance of witnesses beyond the limits of the state, or because the taking and using of depositions of witnesses so situated in criminal cases on behalf of defendant is not provided for and may not be recognized in that state. Judgment 39 S. E. 284, 113 Ga. 772, affirmed.—Minder v. State of Geor-

gia. 22 S. Ct. 224, 183 U. S. 559, 46 L. Ed. 328.

The equal protection of the laws is not denied to two or three persons convicted of conspiracy to defraud, because their sentence was for 10 years' imprisonment, while that of their codefendant was for but 7 years. Writ of error, *State v. Howard*, 40 S. E. 71, 129 N. C. 584, dismissed.—*Howard v. Fleming*, 24 S. Ct. 49, 191 U. S. 126, 48 L. Ed. 121.

Laws 28th Leg. p. 68, c. 50, § 3, which prohibits owners or lessees of property from permitting the same to be used as places for the sale of pools, book making, or wagering on horse races, even if construed so as to allow the owner of such premises to use them for the purpose for which he is forbidden to let others use them, is not in violation of Const. U. S. Amend. 14, guarantying equal protection of the laws, as the discrimination would be between classes, and not between members of a class. Judgment, *Ex parte Hernan* (Tex. Cr. App.) 77 S. W. 225, 45 Tex. Cr. R. 343, affirmed.—*Hernan v. State of Texas*, 25 S. Ct. 800, 198 U. S. 579, 49 L. Ed. 1171.

Litigants and persons accused of crime in Wayne county, Mich., are not denied the equal protection of the laws by Pub. Acts Mich. 1893, p. 337, as amended by Pub. Acts Mich. 1895, p. 69, under which the jury lists are made up and returned by a board or jury commissioners appointed by the Governor with the consent of the Senate, and may include persons whose names do not appear on the assessment roll, while, by the general laws of the state, the officers authorized to make and return the jury lists are elected by the people in their several townships and in city wards, and the jurors must be of those who are assessed on the assessment roll. Judgment, *People v. Gardner* 100 N. W. 126, 136 Mich. 693, 11 Detroit Leg. N. 166, affirmed.—*Gardner v. People of State of Michigan*, 26 S. Ct. 106, 199 U. S. 325, 50 L. Ed. 212.

The decision of the Kentucky court of appeals that a reversal of a conviction for the error, if any, committed by the trial court in discharging a juror, was precluded by Cr. Code Ky. § 281, does not deny the accused the equal protection of the laws secured by Const. U. S. Amend. 14, if such was the construction given that section by prior cases, and no discriminating application against him was made. Judgment 80 S. W. 211, 118 Ky. 1, 25 Ky. Law Rep. 2213, affirmed.—*Howard v. Commonwealth of Kentucky*, 26 S. Ct. 189, 200 U. S. 164, 50 L. Ed. 421.

The equal protection of the laws is not denied to manufacturers and sellers of mixed paints containing other ingredients than pure linseed oil, pure carbonate of lead, oxid of zinc, turpentine, Japan dryer, and pure colors, by a state statute which makes the manufacture and sale of such paints a misdemeanor unless the label shows the constituent ingredients and the quantity or amount of each, because the manufacture and sale of mixed paints containing only the ingredients specified in the statute, and, possibly, of all paste paints, are free from such consequence or condition.—*Heath & Milligan Mfg. Co. v. Worst*, 28 S. Ct. 114, 207 U. S. 338, 52 L. Ed. 236.

Corporations are not denied the equal protection of the laws secured by Const. U. S. Amend. 14, by the provisions of Act Vt. Oct. 9, 1906, p. 79, No. 75, under which corporations alone may be compelled to produce before a court or grand jury material books and papers in their custody or control. Judgment, *In re Consolidated Rendering Co.* (Vt. 1907) 66 A. 790, affirmed.—*Consolidated Rendering Co. v. State of Vermont*, 28 S. Ct. 178, 207 U. S. 541, 52 L. Ed. 327, 12 Ann. Cas. 658.

Constitutional rights of the accused are not violated by Act March 2, 1907, c. 2564, 34 Stat.

1246 (U. S. Comp. St. Supp. 1907, p. 209), authorizing the United States to bring up a criminal case from a circuit court to the Supreme Court by a direct writ of error where an indictment has been quashed or set aside, or a demurrer to the indictment or any count thereof has been sustained on the ground of the invalidity or construction of the statute upon which the indictment was founded, although such statute does not allow the accused to bring up the case in the same way when a demurrer to the indictment or some count thereof has been overruled. Judgment (C. C. 1907) 155 F. 938, reversed.—*United States v. Bitty*, 28 S. Ct. 396, 208 U. S. 393, 52 L. Ed. 543.

A person indicted for a crime committed after the grand jury was impaneled is not denied the equal protection of the laws because he is precluded from raising the objection that two of the grand jurors were over the age fixed by Laws N. J. 1876, p. 360, c. 196, under which objections on that ground must be made before the jury is sworn, where the object sought to be attained by the statute, according to the view adopted by the state court, was to make the grand jury a more efficient instrument of justice, and not to benefit any particular defendant or class of defendants. Judgment, *State v. Lang* (N. J. 1907) 68 A. 210, affirmed.—*Lang v. State of New Jersey*, 28 S. Ct. 594, 209 U. S. 467, 52 L. Ed. 894.

Corporations are not denied the equal protection of the laws because corporate violators of the Tennessee anti-trust act of March 16, 1903 (Laws 1903, c. 140), may be proceeded against by bill in equity on relation of the attorney general, while natural persons offending against its provisions cannot be tried without a preliminary investigation by a grand jury, and indictment or presentment, and a trial by jury, with the right to an acquittal unless their guilt is established beyond a reasonable doubt, and to the benefit of a statute of limitations of one year.—*Standard Oil Co. of Kentucky v. State of Tennessee ex rel. Cates*, 30 S. Ct. 543, 217 U. S. 413, 54 L. Ed. 817, affirming decree, *State v. Standard Oil Co. of Kentucky* (1908) 110 S. W. 565, 120 Tenn. 86.

Congress could, by Act March 2, 1907, c. 2564, 34 Stat. 1246 (U. S. Comp. St. Supp. 1909, p. 220), authorize the government to bring up a criminal case from a federal Circuit Court to the Supreme Court when a demurrer to an indictment has been sustained, although the same privilege is denied the accused when the indictment is sustained, even assuming that the United States is bound to afford the equal protection of the laws to persons within its jurisdiction.—*United States v. Heinze*, 31 S. Ct. 98, 218 U. S. 532, 54 L. Ed. 1139, 21 Ann. Cas. 884.

Singling out convicts serving life sentences in a state prison as proper subjects for the imposition of the death penalty, as is done by Pen. Code Cal. § 246, in case they shall, with malice aforethought, commit an assault upon the person of another with a deadly weapon or instrument, or by any means of force likely to produce great bodily injury does not deny such life prisoners the equal protection of the laws.—(1911) *Finley v. People of State of California*, 32 S. Ct. 13, 222 U. S. 28, 56 L. Ed. 75, affirming judgment (1908) *People v. Finley*, 94 P. 248, 153 Cal. 59.

Bringing a convict after judgment before court of another county in a separate proceeding under Code W. Va. 1906, c. 165, §§ 1-5, by information charging him with prior convictions not alleged in the former indictment, and on a verdict sentencing him to additional punishment under chapter 152, §§ 23, 24, does not deny the equal protection of the laws.—(1912) *Graham v. State of West Virginia*, 32 S. Ct. 583, 224 U. S. 616, 56 L. Ed. 917, affirming judgment (1911) *State v. Graham*, 69 S. E. 1010, 68 W. Va. 248.

Denying to an inhabitant of Manila a preliminary examination accorded to other persons on the islands as done by Philippine Commission, Act No. 612, § 2, does not contravene the prohibition of the Philippine Bill of Rights, Act July 1, 1902, § 5, against the denial of equal protection of the laws.—*Ocampo v. United States*, 34 S. Ct. 712, 234 U. S. 91, 58 L. Ed. 1231.

Equal protection of the laws is not denied to a person sentenced to 14 years' imprisonment on conviction of perjury, under Pen. Code Cal. § 126, though for other crimes of greater gravity 5 years' imprisonment may be the average maximum penalty.—*Collins v. Johnston*, 35 S. Ct. 649, 237 U. S. 502, 59 L. Ed. 1071.

XI. DUE PROCESS OF LAW.

Denial as ground of jurisdiction of federal court, see Courts, ¶282, 385(7), 888, 894(3, 10). Orders of military government, see War, ¶31.

¶251. Constitutional guaranties in general.

See 10 Cent. Dig. Const. Law, §§ 725, 727, 732.

The constitutional provision that no person shall be deprived of life, liberty, or property without due process of law is intended as a limitation upon the power of the government in its dealings with the citizen, and relates to that class of rights whose protection is peculiarly within the province of the judicial branch of the government.—*United States v. Lee*, 106 U. S. 196, 1 S. Ct. 240, 27 L. Ed. 171.

The prohibition against depriving any person of life, liberty, or property without due process of law extends to the action of any one who, by virtue of public position under the state government, deprives another of any rights secured by that amendment.—*Chicago, B. & Q. R. Co. v. City of Chicago*, 17 S. Ct. 581, 168 U. S. 226, 41 L. Ed. 979.

"Due process of law" implies at least a conformity with natural and inherent principles of justice, and forbids that one man's property, or right to property, shall be taken for the benefit of another, or for the benefit of the state, without compensation, and that no one shall be condemned in his person or property without an opportunity of being heard in his own defense.—*Holden v. Hardy*, 18 S. Ct. 883, 169 U. S. 366, 42 L. Ed. 780.

The acts of a municipal corporation cannot be said to be wanting in the due process of law guarantied by Const. U. S. Amend. 14, if such acts, when done or ratified by the state, would not be inconsistent with that amendment.—*Owensboro Waterworks Co. v. City of Owensboro*, 26 S. Ct. 249, 200 U. S. 88, 50 L. Ed. 361.

The Illinois state board of equalization in making an assessment pursuant to the supposed command of a writ of mandamus represents the state, there being no method of reviewing its decision except by judicial proceedings for relief from the assessment, and its action is therefore repugnant to Const. U. S. Amend. 14, if it denies any one the due process of law protected by that amendment against impairment by the state. Judgment, *Chicago Union Traction Co. v. State Board of Equalization* (C. C. 1902) 114 F. 557, affirmed.—*Raymond v. Chicago Union Traction Co.*, 28 S. Ct. 7, 207 U. S. 20, 52 L. Ed. 78, 12 Ann. Cas. 757; *Same v. Chicago Edison Co.*, 28 S. Ct. 14, 207 U. S. 42, 52 L. Ed. 90.

Const. U. S. Amend. 5, is not restrictive of state, but only of national, action. Judgment, *In re City of Pittsburgh*, 66 A. 348, 217 Pa. 227; Appeal of *Hunter, Id.*, affirmed.—*Hunter v. City of Pittsburgh*, 28 S. Ct. 40, 207 U. S. 161, 52 L. Ed. 151.

The guaranty of due process of law inhibits the taking of one man's property and giving it to another, contrary to settled modes of procedure, without opportunity for hearing.—*Ochoa v. Hernandez y Morales*, 33 S. Ct. 1033, 230 U. S. 139, 57 L. Ed. 1427.

¶252. Persons protected.

See 10 Cent. Dig. Const. Law, §§ 728-731.

A contract made by a city with a water company, so far as the city's rights are concerned, is subject to the will of the legislature, and a statute authorizing a change therein modifying the city's right to tax the water company does not operate as a taking of its property without due process of law.—*City of New Orleans v. New Orleans Waterworks Co.*, 142 U. S. 79, 12 S. Ct. 142, 35 L. Ed. 943.

Private corporations are "persons" within Const. Amend. 14, § 1, prohibiting the states from depriving any "person" of property without due process of law, etc.—*Charlotte, C. & A. R. Co. v. Gibbes*, 142 U. S. 386, 12 S. Ct. 255, 35 L. Ed. 1051, affirming judgment 27 S. Ct. 385, 4 S. E. 49.

A railroad corporation is a person, within the meaning of the fourteenth amendment, declaring that no state shall deprive any person of property without due process of law.—*Smyth v. Ames*, 18 S. Ct. 418, 169 U. S. 466, 42 L. Ed. 819, affirming decree (C. C.) *Ames v. Union Pac. Ry. Co.*, 64 F. 165.

The liberty guarantied by Const. U. S. Amend. 14, against deprivation without due process of law is the liberty of natural, not artificial persons. Judgment, *Greenberg v. Western Turf Ass'n* (1905) 82 P. 684, 148 Cal. 126, affirmed.—*Western Turf Ass'n v. Greenberg*, 27 S. Ct. 384, 204 U. S. 359, 51 L. Ed. 520.

¶253. Nature of acts prohibited in general.

See 10 Cent. Dig. Const. Law, §§ 732-735.

When the parties have been fully heard in the regular course of judicial proceedings, an erroneous decision of a state court does not deprive the unsuccessful party of his property without due process of law, within the meaning of Const. U. S. Amend. 14.—*Central Land Co. of West Virginia v. Laidley*, 159 U. S. 103, 16 S. Ct. 80, 40 L. Ed. 91.

¶254. Control over governmental agencies in general.

See 10 Cent. Dig. Const. Law, § 735.

Citizens and taxpayers of a lesser municipality annexed under the authority of Act Pa. Feb. 7, 1906, §§ 1-9 (P. L. 7-11), to an adjoining and larger municipality, are not deprived of their property without due process of law by reason of the burden of additional taxation resulting from the consolidation, although the method of voting prescribed by the statute has permitted the voters of the larger city to overpower the voters of the smaller one, and compel the union without their consent and against their protest. Judgment, *In re City of Pittsburgh*, 66 A. 348, 217 Pa. 227; Appeal of *Hunter, Id.*, affirmed.—*Hunter v. City of Pittsburgh*, 28 S. Ct. 40, 207 U. S. 161, 52 L. Ed. 151.

The power of a state to determine what duties may be performed by local officers, and whether they shall be appointed or elected by the people, was not taken away by the due process of law clause of the fourteenth amendment to the federal Constitution.—(1912) *Soliah v. Heskin*, 32 S. Ct. 103, 222 U. S. 522, 56 L. Ed. 294, affirming judgment (1908) *Same v. Cormack*, 117 N. W. 125, 17 N. D. 393.

The power of a state to compel a township, as one of its political subdivisions, to

levy and collect taxes for the purpose of paying the amount assessed against such township for the public benefits accruing from the construction of a drain, was not taken away by the due process of law clause of the fourteenth amendment to the federal Constitution.—*Id.*

The prohibitions and guaranties of Const. U. S. Amend. 14, are addressed to and control not only the state but also every person, whether natural or judicial, who is repository of state power.—*Home Telephone & Telegraph Co. v. City of Los Angeles*, 33 S. Ct. 312, 227 U. S. 278, 57 L. Ed. 510.

A case where a state officer uses his power to the doing of acts forbidden by Const. U. S. Amend. 14, is within such amendment, if the commission of the wrong is rendered possible, or is aided by state authority lodged in the wrongdoer.—*Id.*

Acts done under an ordinance passed under a power conferred by a state are within the fourteenth amendment to the federal Constitution.—*Id.*

The additional conditions on the right to enjoy second-class mail privileges imposed by Post Office Appropriation Act August 24, 1912, § 2, are incidental to the purpose to be secured by the second-class classification, and do not take property without due process of law.—*Lewis Pub. Co. v. Morgan*, 33 S. Ct. 867, 229 U. S. 288, 57 L. Ed. 1180.

255. Deprivation of life or liberty in general.

See 10 Cent. Dig. Const. Law, §§ 736-738, 740-745.

Gen. St. Kan. 1889, c. 82, § 326, providing that, when a prosecution has been instituted without probable cause and maliciously, the name of the prosecutor shall be stated in the finding, and he shall be adjudged to pay the costs, and committed to the county jail until they are paid, is not invalid as depriving the prosecutor of his property without due process of law.—*Lowe v. State of Kansas*, 163 U. S. 81, 16 S. Ct. 1031, 41 L. Ed. 78.

"Liberty," as used in the provision of the fourteenth amendment to the federal constitution, forbidding the states to deprive any person of life, liberty, or property without due process of law, includes, it seems, not merely the right of a person to be free from physical restraint, but to be free in the enjoyment of all his faculties in all lawful ways; to live and work where he will; to earn his livelihood by any lawful calling; to pursue any livelihood or avocation; and for that purpose to enter into all contracts which may be proper, necessary, and essential to carrying out the purposes above mentioned.—*Allgeyer v. State of Louisiana*, 17 S. Ct. 427, 165 U. S. 578, 41 L. Ed. 832.

A person is not deprived of liberty without due process of law by being adjudged a lunatic in his absence, under Civ. Code Ala. 1886, § 2393, providing that the sheriff may take possession of the person, "and, if consistent with his health or safety, have him present at the place of trial," where such person is duly served with process, but is not produced by the sheriff at the trial because, on examination by a physician, it is deemed to be inconsistent with his health or safety, and he is not in fact prevented from attending the hearing or refused opportunity to be represented there by counsel.—*Simon v. Craft*, 21 S. Ct. 836, 182 U. S. 427, 45 L. Ed. 1165.

Exemption from self-incrimination is not safeguarded as against state action by the provision of Const. U. S. Amend. 14, that no state shall deprive any person of life, liberty, or property without due process of law. Judgment, *State of New Jersey v. Twining* (1906)

64 A. 1073, 73 N. J. Law, 683, affirmed.—*Twining v. State of New Jersey*, 29 S. Ct. 14, 211 U. S. 78, 53 L. Ed. 97.

Imprisonment for 2½ months under the order of the Governor of a state, in the exercise of his power under the state Constitution and laws to call upon the military arm of the state government to suppress an insurrection, does not deprive the person imprisoned of his liberty without due process of law. Judgment (C. C. 1906) 148 F. 870, affirmed.—*Moyer v. Peabody*, 29 S. Ct. 235, 212 U. S. 78, 53 L. Ed. 410.

Rem. & Bal. Code Wash. § 2564, making criminal editing of printed matter advocating disrespect for law, held not a violation of Const. U. S. Amend. 14, as an unjustifiable restriction of liberty.—*Fox v. State of Washington*, 35 S. Ct. 383, 236 U. S. 273, 59 L. Ed. 573, affirming judgment *State v. Fox*, 127 P. 1111, 71 Wash. 185.

Liberty is not taken without due process of law, contrary to Const. Amend. 14, by Laws Fla. 1913, c. 6537, §§ 10, 12, making it a misdemeanor punishable by fine and imprisonment to fail to perform labor on the highways.—*Butler v. Perry*, 36 S. Ct. 255, 240 U. S. 328, 60 L. Ed. 672, affirming judgment 66 So. 150, 67 Fla. 405.

256. Criminal prosecutions.

See 10 Cent. Dig. Const. Law, §§ 746-761.

257. — In general.

See 10 Cent. Dig. Const. Law, §§ 746, 747, 749.

How. St. Mich. § 9151, denounces the crime of embezzlement by "any officer, agent, clerk, or servant," and section 9152 provides for the punishment of "any attorney at law," or other person connected with the administration of justice, who collects money belonging to another, and fails to pay it over. Petitioner was arraigned for embezzlement under the former section, and pleaded that, "as an attorney at law, I am guilty of embezzlement of \$3,500, that being the amount collected and received by me." He was sentenced as upon a plea of guilty of the crime charged, and on error the supreme court of Michigan affirmed the judgment on the ground that an attorney at law was an "agent" in the collection of money. Held, that petitioner had the benefit of due process of law, and therefore could not be released on habeas corpus under the fourteenth amendment to the Constitution of the United States.—*Ex parte Converse*, 137 U. S. 624, 11 S. Ct. 191, 34 L. Ed. 796, affirming judgment (C. C.) 42 F. 217.

Where an indictment for a major offense is found in a state court, it is for the state court to determine whether it is sufficient to support a conviction of a minor offense; and the determination of that question does not involve a consideration of Const. U. S. Amend. 14, § 1, declaring that no state shall deprive any person of life, liberty, or property without due process of law, particularly where no such question was seasonably and specifically presented.—*Moore v. State of Missouri*, 159 U. S. 673, 16 S. Ct. 179, 40 L. Ed. 301, affirming judgment *State of Missouri v. Moore*, 121 Mo. 514, 26 S. W. 345.

An opportunity for hearing, sufficient to satisfy any requirement of Const. U. S. Amend. 14, respecting due process of law, is afforded by the provisions of Act Vt. Oct. 9, 1906, p. 79, No. 75, for the compulsory production of the books and papers of a corporation before a court or grand jury, where the corporation has full opportunity to show cause before the court why it does not produce such books and papers, and, by objection to the production before the grand jury, can raise the question before that body, and is entitled to be heard upon that question before the court to which it is the grand jury's duty to report the question for its action. Judgment, *In re Consolidated Rendering Co.*

(Vt. 1907) 66 A. 790, affirmed.—Consolidated Rendering Co. v. State of Vermont, 28 S. Ct. 178, 207 U. S. 541, 52 L. Ed. 327, 12 Ann. Cas. 658.

Due process of law is not denied a foreign corporation doing business in the state by Act Vt. Oct. 9, 1906, p. 79, No. 75, under which it may be compelled, under penalty of fine in case of refusal, to produce before a court or grand jury material evidence in the shape of books or papers, kept by it in the state, and which are in its custody and control, although at the time outside the borders of the state.—Id.

A conviction for practising medicine without registration, contrary to Code Pub. Gen. Laws, Md. 1904, art. 43, § 99, is not wanting in due process of law because the accused was not given the notice required by section 80 of that article to be sent to unregistered physicians, where he had a trial before a court and jury under the Maryland statutes, was proceeded against under the forms provided for by the laws of that state, and the section under which the conviction was had has been construed by the highest court of the state completely to define the offense without resorting to the necessity of notifying unregistered physicians before they become liable to the penalties for practising without registration.—(1910) Watson v. State of Maryland, 30 S. Ct. 644, 218 U. S. 173, 54 L. Ed. 987, affirming judgment (1907) 66 A. 635, 105 Md. 650.

The due process of law secured to the people of the Philippine Islands by Act July 1, 1902, c. 1369, § 5, 32 Stat. 692, was not denied by the affirmance in the Supreme Court of the Philippine Islands of a conviction of the offense described in Philippine Pen. Code, art. 343, which was repealed after the conviction and sentence in the court of first instance by the act of the Philippine Commission of October 9, 1907, Act No. 1757, the repealing act also providing for the punishment of the same offense, and within limitations not exceeded by the sentence imposed under the former act.—Ong Chang Wing v. United States, 31 S. Ct. 15, 218 U. S. 272, 54 L. Ed. 1040.

Conviction on an amended information after prior conviction under original information had been set aside and a new trial granted was not a violation of the due process clause of Const. U. S. Amend. 14, because no arraignment or plea was had on the second information, where accused without objecting to failure to arraign objected to information and was put on trial before a jury.—Garland v. State of Washington, 34 S. Ct. 456, 232 U. S. 642, 58 L. Ed. 772, affirming judgment State v. Garland, 118 P. 907, 65 Wash. 668.

Criminal prosecution in a state court under law not repugnant to federal Constitution according to the course of judicial proceedings in such state is due process of law within Const. U. S. Amend. 14, where it includes notice and a hearing before a court of competent jurisdiction.—Frank v. Mangum, 35 S. Ct. 582, 237 U. S. 309, 59 L. Ed. 969.

Person indicted for perjury in testifying in a suit by his alleged wife for alimony, that they were not married, held not able to contend that his conviction under a new indictment for perjury on the trial of the first indictment was lacking in due process of law, on the ground that the court refused to consider his defense that the evidence was not material to the issue.—Collins v. Johnston, 35 S. Ct. 649, 237 U. S. 502, 59 L. Ed. 1071.

258. — Statutory creation or definition of offense.

See 10 Cent. Dig. Const. Law, § 748.

Act Kan. March 7, 1885, amendatory of Act Feb. 19, 1881, prohibiting the manufacture

or sale of intoxicating liquors within the state, except for medical, scientific, and mechanical purposes, section 13 of which provides that all places where liquors are manufactured, sold, or given away, or kept for such purposes, are thereby declared to be common nuisances, and, upon the judgment of any court having jurisdiction finding such place to be a nuisance, the proper officer shall abate the same by taking possession, and destroying the liquors and property used in maintaining said nuisance; that the keeper thereof shall, upon conviction, be punished by a fine and imprisonment; that the attorney general, county attorney, or any citizen of the county where such nuisance is maintained may maintain an action in the name of the state to abate the same; that an injunction shall be granted at the commencement of the action, and no bond shall be required; that violation of the injunction shall be punished as for contempt by fine or imprisonment, or both; and section 14, providing that, in prosecutions under this act, the state need not, in the first instance, prove that the sale was without a permit,—is not an attempt to deprive persons of their liberty without due process of law, within the meaning of Const. U. S. Amend. 14.—Mugler v. Kansas, 123 U. S. 623, 8 S. Ct. 273, 31 L. Ed. 205, affirming decree 29 Kan. 252, 44 Am. Rep. 634.

Act Pa. May 21, 1885, providing that no person shall manufacture, out of any compound other than that produced from unadulterated milk, any articles designed to take the place of butter or cheese, nor shall sell or offer for sale the same as an article of food, does not deprive any one of liberty without due process of law.—Powell v. Pennsylvania, 127 U. S. 678, 8 S. Ct. 992, 1257, 32 L. Ed. 253, affirming judgment 114 Pa. St. 265, 7 A. 913, 60 Am. Rep. 350.

A state local option law does not violate the due process of law clause of the federal Constitution by vesting legislative powers in the judiciary, because it fails to define the words "wholesale" and "retail," as used in that act, and commits to the courts the power to fix the punishment for this and subsequent offenses by imposing a fine of not less than \$200 and imprisonment of not more than 60 and not less than 10 days. Judgment 70 N. E. 1131, 68 Ohio St. 688, affirmed.—State of Ohio ex rel. Lloyd v. Dollison, 24 S. Ct. 703, 194 U. S. 445, 48 L. Ed. 1082.

A municipal ordinance, which makes it unlawful to visit or resort to a barred or barricaded house or room where gambling implements are exhibited or exposed to view, does not deprive any one of his liberty without due process of law, even if it authorizes a conviction for an innocent visit to such a place.—Ah Sin v. Wittman, 25 S. Ct. 756, 198 U. S. 500, 49 L. Ed. 1142.

Property rights are not invaded without due process of law in violation of Const. U. S. Amend. 14, by the provision of Act Neb. April 8, 1903, p. 644, c. 139, making it a misdemeanor to use representations of the national flag upon articles of merchandise for advertising purposes. Judgment (Neb. 1905) 105 N. W. 298, affirmed.—Halter v. State of Nebraska, 27 S. Ct. 419, 205 U. S. 34, 51 L. Ed. 696, 10 Ann. Cas. 525.

The right of personal liberty guaranteed by Const. U. S. Amend. 14, is not infringed by the provision of Act Neb. April 8, 1903, p. 644, c. 139, making it a misdemeanor to use representations of the national flag upon articles of merchandise for advertising purposes.—Id.

Rights under Const. U. S. Amend. 14, are not infringed by the provision of Act N. J. March 24, 1899, p. 514, § 20, as amended by Act March 22, 1901, p. 317, under which a conviction may be had for using a dredge in tidal waters of the state for the purpose of catching

oysters upon leased lands without the consent of the lessees. Judgment, *State v. Lee* (1905) 59 A. 1118, affirmed.—*Lee v. State of New Jersey*, 28 S. Ct. 22, 207 U. S. 67, 52 L. Ed. 106.

Manufacturers and sellers of mixed paints containing other ingredients than pure linseed oil, pure carbonate of lead, oxid of zinc, turpentine, Japan dryer, and pure colors, are not deprived of their liberty without due process of law by a state statute which makes such manufacture and sale a misdemeanor unless the label shows the constituent ingredients and quantity or amount of each.—*Heath & Milligan Mfg. Co. v. Worst*, 28 S. Ct. 114, 207 U. S. 338, 52 L. Ed. 236.

Due process of law is not denied a corporation convicted of violating the Texas anti-trust laws of May 25, 1899 (Laws 1899, p. 246, c. 146), and of March 31, 1903 (Laws 1903, p. 119, c. 94), because the legislation permits and the trial court charged that there may be a conviction, not only for acts which accomplish the prohibited result, but also for those which "tend" or are "reasonably calculated" to bring about such result. Judgment (Tex. Civ. App. 1908) 106 S. W. 918 affirmed.—*Waters-Pierce Oil Co. v. State of Texas*, 29 S. Ct. 220, 212 U. S. 86, 53 L. Ed. 417.

Due process of law is not denied by the provisions of Elkins Act Feb. 19, 1903, c. 708, 32 Stat. 847 (U. S. Comp. St. Supp. 1907, p. 880), under which the commission by corporate officers, acting within the scope of their employment, of criminal violations of the prohibitions of that act against giving rebates, is imputed to the corporation, and the corporation is subjected to criminal prosecution therefor. Judgment (C. C. 1906) *United States v. New York Cent. & H. R. R. Co.*, 146 F. 298; Same v. Guilford, Id., affirmed.—*New York Cent. & H. R. R. Co. v. United States*, 29 S. Ct. 304, 212 U. S. 481, 53 L. Ed. 613.

Liberty and property are not taken without due process of law, contrary to Const. U. S. Amend. 5, by the provisions of Rev. St. D. C. § 1177, making it a crime to engage in any manner in any gift enterprise business in the District.—*In re Gregory*, 31 S. Ct. 143, 219 U. S. 210, 55 L. Ed. 184.

A conviction of selling pooled tobacco without the consent of the agent of the pool, contrary to Ky. St. § 3941a, is wanting in due process of law because of the uncertainty of the test of the legality of the pool prescribed by Ky. St. § 3915, and Const. Ky. § 198.—*Collins v. Commonwealth of Kentucky*, 34 S. Ct. 924, 234 U. S. 634, 58 L. Ed. 1510, reversing judgment 133 S. W. 233, 141 Ky. 564; *Malone v. Same*, 34 S. Ct. 926, 234 U. S. 639, 58 L. Ed. 1512, reversing judgment 133 S. W. 235, 141 Ky. 570.

261. — Preliminary complaint and warrant.

See 10 Cent. Dig. Const. Law, § 752.

The mere fact that a criminal is illegally carried, against his will, into the United States from a foreign country, with no reference to extradition treaties, does not render his subsequent trial and conviction, based upon jurisdiction regularly acquired by his presence in the country, invalid, as tending to deprive him of liberty "without due process of law."—*Ker v. People of State of Illinois*, 119 U. S. 436, 7 S. Ct. 225, 30 L. Ed. 421.

262. — Arrest and bail.

See 10 Cent. Dig. Const. Law, § 752.

The provisions of Code Cr. Proc. N. Y. §§ 527, 555, for admitting to bail a defendant appealing from conviction for a crime not punishable with death, only when there is a stay of proceedings, by filing a certificate of a judge that there is reasonable doubt whether the

judgment should stand, do not deprive the defendant of liberty without due process of law.—*McKane v. Durston*, 153 U. S. 684, 14 S. Ct. 913, 38 L. Ed. 867.

A state police officer is not forbidden to make an arrest on the requisition of a consul of a foreign nation, charging a seaman on a vessel of that nation with insubordination, conformably to a treaty provision, because of the guaranty of the state Constitution against the deprivation of personal liberty without due process of law.—*Dallemagne v. Moisan*, 25 S. Ct. 422, 197 U. S. 169, 49 L. Ed. 709.

263. — Preliminary examination and commitment.

See 10 Cent. Dig. Const. Law, § 753.

Preliminary examination is properly dispensed with by Philippine Commission Act, No. 612, § 2, in cases triable in the court of the first instance in Manila, where the prosecuting attorney presented an information, without infringing Philippine Bill of Rights, Act July 1, 1902, § 5, against denial of due process of law.—*Ocampo v. United States*, 34 S. Ct. 712, 234 U. S. 91, 58 L. Ed. 1231.

265. — Indictment or information.

See 10 Cent. Dig. Const. Law, § 755.

Const. Cal. 1879, art. 1, § 8, authorizes prosecutions for felonies by information, after examination and commitment by a magistrate, without indictment by a grand jury, in the discretion of the legislature. The Penal Code of California provides for an examination by a magistrate in the presence of the accused, who is entitled to the aid of counsel and the right of cross-examination of witnesses, whose testimony is to be reduced to writing, and directs that if it appears from the examination that a described offense has been committed, and that there is sufficient cause to believe the accused guilty thereof, he shall be held to answer thereto, and an information shall be filed against the accused in the superior court of the county in which the offense is triable, in the form of an indictment for the same offense. Held, that a conviction on such an information for murder in the first degree, and a sentence of death thereon, do not violate Const. U. S. Amend. 14, which prohibits the states from depriving any person of life, liberty, or property without due process of law.—*Hurtado v. People of State of California*, 110 U. S. 516, 4 S. Ct. 111, 292, 28 L. Ed. 232.

A general statute (Act March 26, 1881; Laws Tex. 1881, p. 60 et seq.) authorizing a simplified form of indictment for murder is not contrary to the fourteenth amendment, as depriving a person convicted under an indictment, in the form prescribed, of life, etc., "without due process of law," for the technical sufficiency of the indictment is a question within the jurisdiction of the state courts.—*Caldwell v. State*, 137 U. S. 692, 11 S. Ct. 224, 34 L. Ed. 816, affirming judgment 28 Tex. App. 566, 14 S. W. 122.

Where the prosecution of a capital offense by information, instead of indictment, is authorized by a state constitution, a prosecution and conviction in accordance therewith in the state courts are not without due process of law.—*McNulty v. People of the State of California*, 149 U. S. 645, 13 S. Ct. 959, 37 L. Ed. 882; *Vincent v. Same*, 149 U. S. 648, 13 S. Ct. 960, 37 L. Ed. 884.

The requirement of due process of law does not necessarily require an indictment by a grand jury.—*Hodgson v. State of Vermont*, 18 S. Ct. 80, 168 U. S. 262, 42 L. Ed. 461; *Dowdell v. United States*, 31 S. Ct. 590, 221 U. S. 325, 55 L. Ed. 753.

An information for illegally selling liquor "at divers times" on a certain day, when aided by specifications as to whom the sales were

made, is sufficient, as constituting due process of law, though it does not name the kind, quantity, or price.—*Hodgson v. State of Vermont*, 18 S. Ct. 80, 168 U. S. 262, 42 L. Ed. 461.

A prosecution by information cannot be deemed insufficient to constitute due process of law, if it is authorized by the Constitution of the state.—*Bolin v. State of Nebraska*, 20 S. Ct. 287, 176 U. S. 83, 44 L. Ed. 382, affirming judgment *Same v. State*, 71 N. W. 444, 51 Neb. 581; *Maxwell v. Dow*, 20 S. Ct. 448, 494, 176 U. S. 581, 44 L. Ed. 597.

A prosecution by information cannot be deemed insufficient to constitute due process of law, if it is authorized by the Constitution of the state.—*Davis v. Burke*, 21 S. Ct. 210, 179 U. S. 399, 45 L. Ed. 249.

Authorizing criminal prosecutions to be instituted by information without preliminary examination, as was done by Act Or. Feb. 17, 1899 (Laws 1899, p. 99), did not contravene the due process of law clause, Const. U. S. Amend. 14.—*Lem Woon v. State of Oregon*, 33 S. Ct. 783, 229 U. S. 586, 57 L. Ed. 1340, affirming judgments *State v. Lem Woon*, 107 P. 974, 57 Or. 482, and 112 P. 427, 57 Or. 482.

266. — Rules of evidence.

See 10 Cent. Dig. Const. Law, § 756.

Due process of law is not denied by the provision of Pen. Code N. Y. § 344b, which makes possession of the record of chances or slips in the game of policy, or the possession of any paper, print or writing commonly used in playing or promoting that game prima facie evidence of "possession thereof knowingly," in violation of section 344a, making the knowing possession of such papers a crime. Judgment, *People v. Adams*, 68 N. E. 636, 176 N. Y. 351, 63 L. R. A. 406, 98 Am. St. Rep. 675, affirmed.—*Adams v. People of State of New York*, 24 S. Ct. 372, 192 U. S. 585, 48 L. Ed. 575.

Due process of law is not denied by the introduction in evidence in a criminal trial, upon proof of nonresidence, permanent absence, and inability to procure the attendance of a witness, of the deposition of such witness, taken upon the preliminary examination before a committing magistrate when defendants were present and their counsel was afforded opportunity to cross-examine. Judgment, *State v. Kline*, 33 So. 618, 109 La. 622, affirmed.—*West v. State of Louisiana*, 24 S. Ct. 650, 194 U. S. 258, 48 L. Ed. 965.

One convicted of crime in a state court is not denied due process of law because on motion for new trial on ground of insanity of a juror the state was only required to establish his sanity by fair preponderance of the evidence.—(1912) *Jordan v. Commonwealth of Massachusetts*, 32 S. Ct. 651, 225 U. S. 167, 56 L. Ed. 1038, affirming judgment (1911) *Commonwealth v. Jordan*, 93 N. E. 809, 207 Mass. 259.

267. — Right to trial by jury.

See 10 Cent. Dig. Const. Law, § 754.

At common law a suggestion of insanity, made after verdict and sentence, did not give rise to an absolute right in the convict to have the issue tried before the court and a jury, but addressed itself to the judge's discretion. Hence the manner in which such issues shall be determined is purely a matter of legislative regulation; and a state statute providing that it shall be determined by a jury summoned by the sheriff, with the assistance and concurrence of the ordinary, and not in the presence of a court or judge, does not deny to the prisoner the due process of law which is secured by the fourteenth amendment to the federal Constitution. *Baughn v. State*, 28 S. E. 68, 100 Ga. 554, 38 L. R. A. 577, affirmed.—*Nobles v. State of*

Georgia, 18 S. Ct. 87, 168 U. S. 398, 42 L. Ed. 515.

Trial by a struck jury in a murder case, in conformity to a state statute which is valid under the state Constitution, providing that the court may select from the persons qualified to serve as jurors ninety-six names, from which the prosecutor and defendant may each strike twenty-four and the remainder of which shall be put in the jury box, out of which the trial jury shall be drawn in the usual way,—does not violate the provision of the federal constitution as to due process of law.—*Brown v. State of New Jersey*, 20 S. Ct. 77, 175 U. S. 172, 44 L. Ed. 119.

A state statute providing for a jury of 8, instead of 12, persons in any criminal case not capital, does not deny the right of the defendant to due process of law, if all persons within the state are made liable to be proceeded against in the same way.—*Maxwell v. Dow*, 20 S. Ct. 448, 494, 176 U. S. 581, 44 L. Ed. 597.

Excluding lawyers, ministers, doctors, dentists, and railway engineers and firemen from serving on either the grand or petit juries does not deny a person convicted of crime in a state court the due process of law guaranteed by Const. U. S. Amend. 14. Judgment, *Turner v. State of Georgia*, 52 S. E. 1, 124 Ga. 31, affirmed.—*Rawlins v. State of Georgia*, 26 S. Ct. 590, 201 U. S. 638, 50 L. Ed. 899, 5 Ann. Cas. 783.

268. — Course and conduct of trial.

See 10 Cent. Dig. Const. Law, §§ 756, 757.

Though it is erroneous to poll a jury before they agree on all the counts, if a nolle prosequi is entered as to the others, such error does not amount to a deprivation of liberty without due process of law.—*Cross v. North Carolina*, 132 U. S. 131, 10 S. Ct. 47, 33 L. Ed. 287, affirming *State v. White*, 101 N. C. 770, 7 S. E. 715, 9 Am. St. Rep. 53.

On a trial for homicide the failure to charge as to any other than murder in the first degree, and the act of the state appellate court in sustaining a conviction on the ground of failure to except to a refusal to charge on the other degrees, is not a deprivation of liberty without due process.—*Davis v. Texas*, 139 U. S. 651, 11 S. Ct. 675, 35 L. Ed. 300, affirming judgment 28 Tex. App. 542, 13 S. W. 994.

Crim. Proc. Act N. J. § 68, distinguishes two degrees of murder, and provides that upon a plea of guilty the court shall proceed by examination of witnesses to determine the degree of the prisoner's crime and to pass sentence accordingly. Held that, when such a proceeding is conducted in strict accordance with the forms prescribed by the constitution and laws of the state, it is due process of law.—*Hallinger v. Davis*, 146 U. S. 314, 13 S. Ct. 105, 36 L. Ed. 986.

The refusal of a state court to continue a criminal case on account of the absence of material witnesses residing in another state is not a denial of due process of law secured by Const. U. S. Amend. art. 14, because it is not within the power of the state courts to compel the attendance of witnesses beyond the limits of the state, or because the taking and using of depositions of witnesses so situated in criminal cases on behalf of defendant is not provided for and may not be recognized in that state. Judgment, 39 S. E. 284, 113 Ga. 772, affirmed.—*Minder v. State of Georgia*, 22 S. Ct. 224, 183 U. S. 559, 46 L. Ed. 328.

The refusal of a state court to review the question whether the officers in charge of the jury on a trial for a felony were sworn, as prescribed by statute, when the jury retired, because such question was first raised on a motion for a new trial, infringes no right secured

to the accused by the fourteenth amendment to the federal constitution, even if the swearing of such officers when the jury retire is essential to the due process of law prescribed by that amendment; but such a ruling is simply an adjudication of a question of criminal practice and local law. Judgment 58 N. E. 620, 59 N. E. 424, 188 Ill. 40, 58 L. R. A. 869, affirmed.—*Dreyer v. People of State of Illinois*, 23 S. Ct. 28, 187 U. S. 71, 47 L. Ed. 79.

The omission on a criminal trial in the state court of any reference to the presumption of innocence cannot be regarded as a denial of due process of law, where the highest court of the state has held that such omission does not invalidate the proceedings. Writ of error, *State v. Howard*, 40 S. E. 71, 129 N. C. 584, dismissed.—*Howard v. Fleming*, 24 S. Ct. 49, 191 U. S. 126, 48 L. Ed. 121.

Errors of a state court in interpreting and applying the laws of that state furnish no basis for the claim that there has been a denial of the due process of law guaranteed by Const. U. S. Amend. 14. Judgment, 80 S. W. 211, 118 Ky. 1, 25 Ky. Law Rep. 2213, affirmed.—*Howard v. Commonwealth of Kentucky*, 26 S. Ct. 189, 200 U. S. 164, 50 L. Ed. 421.

The accused cannot claim to have been denied the due process of law secured by Const. U. S. Amend. 14, by the action of the state court in holding that he could waive his right to be present to the trial to the extent of consenting, through his counsel, in advance of the swearing of the jury, to a private examination of a juror against whom complaint had been made, which resulted in the discharge of such juror, and the selection of another, not shown to be incompetent, in his place.—*Id.*

The failure of the trial court, in a criminal case, to see that the testimony is read or repeated to the accused, who, by reason of his almost total deafness, is unable to hear the evidence, does not infringe the prohibition of Const. U. S. Amend. 14, against the deprivation of liberty without due process of law.—*Felts v. Murphy*, 26 S. Ct. 366, 201 U. S. 123, 50 L. Ed. 689.

The refusal to grant a continuance of a criminal case, sought on the ground that the counsel for the accused had not had sufficient time or opportunity to examine the notes of the testimony taken before the coroner who investigated the case, is not a denial of due process of law, where the difficulty seems to have been that the notes of the testimony were somewhat illegible, and that the person making them was not at hand.—(1910) *Franklin v. State of South Carolina*, 30 S. Ct. 640, 218 U. S. 161, 54 L. Ed. 980, affirming judgment *State v. Franklin* (1908) 60 S. E. 953, 80 S. C. 332.

There is no denial of due process of law guaranteed by Const. U. S. Amend. 14, in practice in Georgia, that accused may waive his right to be present when the jury renders its verdict, and waiver is inferred by a motion for new trial on other grounds alone.—*Frank v. Mangum*, 35 S. Ct. 582, 237 U. S. 309, 59 L. Ed. 969.

269. — New trial.

See 10 Cent. Dig. Const. Law, § 759.

Rev. St. Mo. § 1967, providing that a motion for a new trial "must be filed before judgment, and within four days after the return of the verdict or finding by the court," is not in violation of Const. U. S. Amend. 14.—*Brooks v. Missouri*, 124 U. S. 394, 8 S. Ct. 443, 31 L. Ed. 454.

Allowance of a new trial by a state under better auspices, where the first trial is rendered abortive by mob domination, satisfies due process of law clause of Const. U. S. Amend. 14.—*Frank v. Mangum*, 35 S. Ct. 582, 237 U. S. 309, 59 L. Ed. 969.

270. — Judgment and sentence.

See 10 Cent. Dig. Const. Law, § 758.

Laws N. Y. 1888, c. 489, providing that "punishment of death must in every case be inflicted by causing to pass through the body of the convict a current of electricity of sufficient intensity to cause death," does not violate Const. Amend. 14, which provides that no state shall deprive any person of life, liberty, or property without due process of law, by imposing a cruel punishment.—*In re Kemmler*, 136 U. S. 436, 10 S. Ct. 930, 34 L. Ed. 519.

The court of appeals of New York having decided that an appeal from a conviction of murder in the first degree operates as a stay of the execution only, and not of the solitary confinement, this is controlling upon the supreme court of the United States; and hence a continuance of solitary confinement pending an appeal by the prisoner is the result of his own act, and is not in violation of any right secured by the constitution of the United States.—*McElvaine v. Brush*, 142 U. S. 155, 12 S. Ct. 156, 35 L. Ed. 971; *Trezza v. Same*, 142 U. S. 160, 12 S. Ct. 158; 35 L. Ed. 974.

The right to the due process of law guaranteed by the fourteenth amendment to the federal constitution is not infringed by the decision of a state court sustaining the validity of the Illinois indeterminate sentence act of 1899, although such statute may confer judicial powers upon nonjudicial officers, and, in effect, invest them with the pardoning power of the executive. Judgment, 58 N. E. 620, 59 N. E. 424, 188 Ill. 40, 58 L. R. A. 869, affirmed.—*Dreyer v. People of State of Illinois*, 23 S. Ct. 28, 187 U. S. 71, 47 L. Ed. 79.

A public officer convicted of embezzling public moneys, who has been afforded full opportunity to present every defense permitted by the laws of the state, is not denied due process of law by the imposition, as a part of the sentence, pursuant to Cr. Code Neb. § 124, entirely irrespective of the question whether restitution has been made, of a fine in double the amount of the embezzlement found by the jury, which, by the terms of that section, is to operate as a judgment against the estate of the convict.—*Coffey v. Harlan County*, 27 S. Ct. 305, 204 U. S. 659, 51 L. Ed. 666.

A person sentenced under the Michigan indeterminate sentence act (Pub. Acts 1903, No. 136) after having been twice before convicted of felony is not imprisoned without due process of law because he is deprived by that act of the privilege therein accorded to other convicts at the end of the minimum term of the sentence to make application for parole, though it gives no hearing on the question of prior conviction.—*Ughbanks v. Armstrong*, 28 S. Ct. 372, 208 U. S. 481, 52 L. Ed. 582.

A former convict is not denied due process of law by bringing him, after conviction, before court of another county in a separate proceeding under Code W. Va. 1906, c. 165, §§ 1-5, by information charging him with former convictions, on which he was tried, and on verdict that he was a former convict, sentenced to additional punishment which chapter 152, §§ 23, 24, prescribe.—(1912) *Graham v. State of West Virginia*, 32 S. Ct. 583, 224 U. S. 616, 56 L. Ed. 917, affirming judgment (1911) *State v. Graham*, 69 S. E. 1010, 68 W. Va. 248.

A sentence of 14 years' imprisonment for perjury, under Pen. Code Cal. § 126, does not deprive the convict of liberty without due process of law.—*Collins v. Johnston*, 35 S. Ct. 649, 237 U. S. 502, 59 L. Ed. 1071.

271. — Appeal or error.

See 10 Cent. Dig. Const. Law, § 760.

When a prisoner sentenced to death carries his case to an appellate court, due process of law does not require that he shall be personally

present therein when it pronounces its judgment, since, in case of affirmance, it pronounces no new sentence, but merely directs that the sentence already imposed shall be carried into execution.—*Schwab v. Berggren*, 143 U. S. 442, 12 S. Ct. 525, 36 L. Ed. 218.

Due process of law does not require the presence in the appellate court of a person under sentence of death when judgment of affirmance thereof is entered and the day of execution is fixed by the supreme court, as required by the state statute.—*Fielden v. People of State of Illinois*, 143 U. S. 452, 12 S. Ct. 528, 36 L. Ed. 224, affirming judgment 128 Ill. 595, 21 N. E. 584, and followed in *Schwab v. Berggren*, 143 U. S. 442, 12 S. Ct. 525, 36 L. Ed. 218.

A right of review in capital cases by an appellate court is not a necessary element of due process of law, but it is wholly within the discretion of each state to refuse it or grant it on any terms.—*Andrews v. Swartz*, 156 U. S. 272, 15 S. Ct. 389, 39 L. Ed. 422.

The dismissal by a state supreme court of an appeal in a criminal case, after the accused has escaped, pursuant to an order that the appeal should be dismissed unless he should surrender or be recaptured in a specified time, is not a denial of due process of law.—*Allen v. State of Georgia*, 17 S. Ct. 525, 166 U. S. 138, 41 L. Ed. 949.

The due process of law guaranteed by Const. U. S. Amend. 14, does not require that the highest state court for the review of a conviction of capital crimes be held in any particular county of that state, whatever may be the requirement of the state Constitution in that respect. Order (D. C.) *Ex parte Rogers*, 138 F. 961, affirmed.—*Rogers v. Peck*, 26 S. Ct. 87, 199 U. S. 425, 50 L. Ed. 256.

The refusal of the Supreme Court of the Philippine Islands, on an appeal in a criminal case, to entertain an objection to the sufficiency of the complaint, because such objection was not raised before final judgment in the trial court, does not amount to a conviction of the accused without informing them of the nature and character of the offense charged, or to a conviction without due process of law, in violation of the Bill of Rights enacted by Congress for the Philippine Islands in Act July 1, 1902, c. 1369, 32 Stat. 691, 692 [U. S. Comp. St. Supp. 1905, p. 391], although that court, on appeal, has power to re-examine both the law and the facts, where, as a necessary consequence of the facts found, the testimony offered at the trial, without objection or exception in any form, established every ingredient of the crime.—*Serra v. Mortiga*, 27 S. Ct. 343, 204 U. S. 470, 51 L. Ed. 571.

Due process of law was not denied by the action of the Supreme Court of the Philippine Islands in making an order upon its own motion when the accused were absent from the court, requiring the judge and clerk of the court below to supply deficiencies in the record.—*Dowdell v. United States*, 31 S. Ct. 590, 221 U. S. 325, 55 L. Ed. 753.

272. — Execution of sentence.

See 10 Cent. Dig. Const. Law, § 761.

It is competent, and entirely consistent with due process of law, for a state to confer on the governor the power of fixing the day on which a convict sentenced to death by a court of competent jurisdiction shall be executed.—*Holden v. State of Minnesota*, 137 U. S. 483, 11 S. Ct. 143, 34 L. Ed. 734.

Code Cr. Proc. N. Y. §§ 491, 492, provide that a criminal under sentence of death shall be kept in solitary confinement in the penitentiary until executed, and that the court shall designate a week during which the execution

must take place, but that the warden shall fix the day and hour, keeping the same secret from the prisoner and the public. *Held*, that a warrant from the court commanding the warden to cause the judgment and sentence to be executed, and the condemned to be put to death, "in the mode, manner, and way, and at the place, by law prescribed and provided," constitutes sufficient authority both for the solitary confinement and for the execution in the manner prescribed by law; and, to constitute due process of law, it is not necessary that the mode of confinement or of execution should be more particularly described.—*McElvaine v. Brush*, 142 U. S. 155, 12 S. Ct. 156, 35 L. Ed. 971; *Trezza v. Same*, 142 U. S. 160, 12 S. Ct. 158, 35 L. Ed. 974.

The fact that a contention by one under sentence of death that the warrant issued by the governor for his execution was unauthorized because issued without authority, after a reprieve for a greater time than was authorized by the state law, was decided adversely to the prisoner, does not involve any denial of due process of law, or the infraction of any provision of the United States constitution.—*Lambert v. Barrett*, 159 U. S. 660, 16 S. Ct. 135, 40 L. Ed. 296.

A sentence of conviction imposed under authority of Acts Mass. 1851, c. 87 (Pub. St. c. 187, § 13), after the reversal of a former judgment, on the application of the convict, because it was imposed under a statute that was passed after the offense was committed, and was therefore unconstitutional so far as it related to that offense, does not deprive accused of his liberty without due process of law. Judgment, *Commonwealth of Massachusetts v. Murphy*, 54 N. E. 860, 174 Mass. 369, 48 L. R. A. 393, 75 Am. St. Rep. 853, affirmed.—*Murphy v. Commonwealth of Massachusetts*, 20 S. Ct. 639, 177 U. S. 155, 44 L. Ed. 711.

No denial of the due process of law guaranteed by Const. U. S. Amend. 14, will result from the execution of a death sentence because of the failure of the highest state court, on denying a motion for a new trial, to fix a day for execution, where the Governor of the state had, by a reprieve, already definitely fixed the time for execution at a day which had not arrived when the court made its decision. Order, *Ex parte Rogers* (D. C.) 138 F. 961, affirmed.—*Rogers v. Peck*, 26 S. Ct. 87, 199 U. S. 425, 50 L. Ed. 256.

Solitary confinement by the state authorities, pending the execution of a death sentence after the original day fixed for the execution of that sentence has passed, even if unwarranted, is not a denial of the due process of law guaranteed by Const. U. S. Amend. 14.—*Id.*

273. Contempt proceedings.

See 10 Cent. Dig. Const. Law, § 739.

Where a contempt has been committed in the presence of the court, an order of commitment therefor may be made without notice to the offender, and without giving him an opportunity to be heard.—*In re Terry*, 128 U. S. 289, 9 S. Ct. 77, 52 L. Ed. 405.

Under Acts 20th Gen. Assem. Iowa, c. 143, § 12, authorizing an injunction to restrain the illegal sale of intoxicating liquors, and providing that a person violating such injunction shall be punished for the contempt by fine or imprisonment, or both, in the discretion of the court, summary proceedings by a state court, imposing fine and imprisonment for contempt in violating such an injunction issued by it, without presentment or indictment, or trial by jury, are due process of law, within the meaning of Const. U. S. Amend. art. 14.—*Eilenbecker v. District Court of Plymouth County*, 134 U. S. 31, 10 S. Ct. 424, 33 L. Ed. 801.

While a party in contempt is not entitled to be heard as to matters of mere favor, yet it is a denial of due process of law to strike out an answer, and render a decree pro confesso as a punishment for contempt.—*Hovey v. Elliott*, 17 S. Ct. 841, 167 U. S. 409, 42 L. Ed. 215.

The danger that the testimony given in an examination under Laws Kan. 1897, c. 265, § 10, might incriminate the witness as a violator of the federal anti-trust law, and of the possible use, in a federal prosecution for a violation of such statute, of the testimony given in the state proceeding, is so unsubstantial and remote as not to make an imprisonment for refusal to testify a deprivation of liberty without due process of law, where the statute is construed by the state courts to render material only such questions as relate to transactions within the state, and grants full immunity from prosecution in the state courts. Judgment, *State v. Jack* (1904) 76 P. 911, 69 Kan. 387, 1 L. R. A. (N. S.) 167, affirmed.—*Jack v. State of Kansas*, 26 S. Ct. 73, 199 U. S. 372, 50 L. Ed. 234, 4 Ann. Cas. 689.

Former officers of corporation which has gone out of existence after transferring to them its books and papers are not deprived of liberty without due process of law by commitment for contempt in refusing to obey a subpoena duces tecum directed to the corporation, requiring production of books and papers before a grand jury.—*Wheeler v. United States*, 33 S. Ct. 158, 226 U. S. 478, 57 L. Ed. 309.

274. Deprivation of personal rights in general.

See 10 Cent. Dig. Const. Law, § 726.

A city ordinance providing that no person shall make any public address in any of the public grounds of the city, "except in accordance with a permit from the mayor," does not violate the fourteenth amendment, as that amendment does not destroy the right of the states to enact police regulations as to the subjects within their control.—*Davis v. Commonwealth of Massachusetts*, 17 S. Ct. 731, 167 U. S. 43, 42 L. Ed. 71.

Those whose names were duly entered as Creek freedmen by blood on the rolls made and approved by the Secretary of the Interior acquired rights of which they could not be deprived without the notice and opportunity to be heard essential to due process of law.—(1911) *United States ex rel. Turner v. Fisher*, 32 S. Ct. 37, 222 U. S. 204, 56 L. Ed. 165, affirming judgment (1909) *Same v. Garfield*, 33 App. D. C. 195.

The state may require a member of a Greek letter fraternity at another college to renounce his allegiance with such fraternity before admitting him as a student to the state university, without denying him due process of law.—*Waugh v. Board of Trustees of University of Mississippi*, 35 S. Ct. 720, 237 U. S. 589, 59 L. Ed. 1131, affirming judgment *Board of Trustees of University of Mississippi v. Waugh*, 62 So. 827, 105 Miss. 623.

275. Deprivation of liberty as to occupation or employment.

See 10 Cent. Dig. Const. Law, §§ 830, 835, 839, 843-846.

The Utah statute forbidding the employment of workmen for more than eight hours a day in mines, and in the smelting, reduction, or refining of ores or metals, is not a denial of due process of law.—*Holden v. Hardy*, 18 S. Ct. 383, 169 U. S. 366, 42 L. Ed. 780.

A state statute providing that whenever any railroad company shall discharge a servant or employé, with or without cause, it shall, on the day of discharge, under certain penalties, pay him the unpaid wages earned at the contract rate at the time of discharge, without discount on account of payment before such

wages were payable under the contract of employment (Acts Ark. 1889, p. 76), does not operate as a deprivation of property without due process of law, where the railroad company is incorporated under the state laws, and the state constitution reserves to the legislature the power to amend or repeal all charters of incorporation. Judgment 40 S. W. 705, 64 Ark. 83, 37 L. R. A. 504, 62 Am. St. Rep. 154, affirmed.—*St. Louis, I. M. & S. Ry. Co. v. Paul*, 19 S. Ct. 419, 173 U. S. 404, 43 L. Ed. 746.

The provision for the redemption of store orders, scrip, etc., in money, which is made by Act Tenn. March 17, 1899, requiring all persons who issue such orders to employes in payment of wages to redeem them in money on any regular pay day or at any time within 30 days after they are issued, if presented and payment in money demanded by such employes or by bona fide holders, is not unconstitutional as an arbitrary interference with the right of contract, but is a legitimate exercise of the general legislative power, as well as of the police power. Judgment, *Harbison v. Knoxville Iron Co.*, 53 S. W. 955, 103 Tenn. 421, 76 Am. St. Rep. 682, affirmed.—*Knoxville Iron Co. v. Harbison*, 22 S. Ct. 1, 183 U. S. 13, 46 L. Ed. 55.

Due process of law requires no special provision for granting a hearing to applicants for registration by the board of registration in medicine created by Pub. Acts Mich. 1899, No. 237, where such act provides for semiannual meetings of the board at specified times at the state capitol. Judgment, *People v. Reetz*, 86 N. W. 396, 127 Mich. 87, affirmed.—*Reetz v. People of State of Michigan*, 23 S. Ct. 390, 188 U. S. 505, 47 L. Ed. 563.

The liberty of contract guarantied by Const. U. S. Amend. 14, is not invaded by the provisions of Act Dec. 21, 1898, c. 28, § 24, 30 Stat. 755, 763 [U. S. Comp. St. 1901, pp. 3071, 3080], making it a misdemeanor to pay any seaman wages in advance, and declaring that such payment shall not absolve the vessel or its master or owner from full payment of wages actually earned.—*Patterson v. The Eudora*, 23 S. Ct. 821, 190 U. S. 169, 47 L. Ed. 1002.

The freedom to contract guarantied by Const. U. S. Amend. 14, is not infringed by the provisions of Gen. St. Kan. 1901, §§ 3827-3829, making it a criminal offense for a contractor for a public work to permit or require an employé to perform labor upon that work in excess of eight hours each day. Judgment, *State v. Atkin*, 67 P. 519, 64 Kan. 174, 97 Am. St. Rep. 343, affirmed.—*Atkin v. State of Kansas*, 24 S. Ct. 124, 191 U. S. 207, 48 L. Ed. 148.

The limitation of employment in bakeries to 60 hours a week and 10 hours a day, attempted by Laws N. Y. 1897, c. 415, art. 8, § 110, is an arbitrary interference with the freedom to contract guarantied by Const. U. S. Amend. 14, which cannot be sustained as a valid exercise of the police power to protect the public health, safety, morals, or general welfare. Judgments, *People v. Lochner*, 76 N. Y. S. 396, 73 App. Div. 120, 16 N. Y. Cr. R. 520, and 69 N. E. 373, 177 N. Y. 145, 101 Am. St. Rep. 773, reversed.—*Lochner v. People of State of New York*, 25 S. Ct. 539, 198 U. S. 45, 49 L. Ed. 937, 3 Ann. Cas. 1133.

Const. U. S. art. 14, § 1, providing that no state shall deprive any person of life, liberty, or property without due process of law, is not a limitation on the police power of the state, so as to render an act providing for the cancellation of a physician's certificate for gross immorality unconstitutional. Judgment, *Meffert v. State Board of Medical Registration & Examination*, 72 P. 247, 66 Kan. 710, 1 L. R. A. (N. S.) 811, affirmed.—*Meffert v. Packer*, 25 S. Ct. 790, 195 U. S. 625, 49 L. Ed. 850.

Personal liberty as well as the right of property are invaded without due process of

law in violation of Const. U. S. Amend. 5, by the provisions of Act June 1, 1898, c. 370, § 10, 30 Stat. 424 [U. S. Comp. St. 1901, p. 3205], making it a criminal offense against the United States for an agent or officer of an interstate carrier, having full authority in the premises from his principal, to discharge an employé from service to such carrier because of his membership in a labor organization. Judgment, *United States v. Adair* (D. C. 1907) 152 F. 737, reversed.—*Adair v. United States*, 28 S. Ct. 277, 208 U. S. 161, 52 L. Ed. 436, 13 Ann. Cas. 764.

Rights under Const. U. S. Amend. 14 are not infringed by the limitation of the hours of labor of women employed in laundries to 10 hours daily, which is made by Laws Or. 1903, p. 148, although like legislation affecting male employées may be invalid. Judgment, *State v. Muller* (1906) 85 P. 855, 48 Or. 252, affirmed.—*Muller v. State of Oregon*, 23 S. Ct. 324, 208 U. S. 412, 52 L. Ed. 551, 13 Ann. Cas. 957.

The liberty of contract secured by Const. U. S. Amend. 14, against state invasion, is not infringed by the provision of Acts Ark. 1905, p. 558, c. 219, § 1, under which miners employed at quantity rates are prevented from contracting for wages upon the basis of screened coal instead of the weight of the coal as originally produced in the mine, but such statute is a valid exercise of the police power. Judgment (1904) 98 S. W. 729, 81 Ark. 304, affirmed.—*McLean v. State of Arkansas*, 29 S. Ct. 206, 211 U. S. 539, 53 L. Ed. 315.

Prohibiting employment of children under 16 years of age in various hazardous employments by Laws Ill. 1903, p. 187, does not take liberty or property without due process of law.—*Sturges & Burn Mfg. Co. v. Beauchamp*, 34 S. Ct. 60, 231 U. S. 320, 58 L. Ed. 245, L. R. A. 1915A, 1196, affirming judgment *Beauchamp v. Sturges & Burn Mfg. Co.*, 95 N. E. 204, 250 Ill. 303.

Employment of women for more than ten hours in any one day or more than 56 hours a week in any manufacturing or mechanical establishment may be forbidden, as is done by St. Mass. 1909, c. 514, § 43, without infringing the liberty of contract assured by the fourteenth amendment of the federal Constitution.—*Riley v. Commonwealth of Massachusetts*, 34 S. Ct. 469, 232 U. S. 671, 58 L. Ed. 788, affirming judgment *Commonwealth v. Riley*, 97 N. E. 367, 210 Mass. 387.

Forbidding the employment of women at a time other than is stated in the notice which the employer must post, as is done by St. Mass. 1909, c. 514, § 48, is not such an unreasonable provision as to be wanting in due process of law secured by Const. U. S. Amend. 14.—*Id.*

An infringement of the liberty of contract without due process of law, contrary to Const. U. S. Amend. 14, results from Acts Tex. 31st Leg. c. 46, making it a misdemeanor for any person to act as a conductor on a railway train without having served for two years as a freight conductor or brakeman.—*Smith v. State of Texas*, 34 S. Ct. 681, 233 U. S. 630, 58 L. Ed. 1129, L. R. A. 1915D, 677, Ann. Cas. 1915D, 420, reversing judgment (Tex. Cr. App.) *Same v. State*, 146 S. W. 900.

Liberty and property of an interstate railway company are not taken without due process of law by Laws N. Y. 1897, c. 415, § 10, as amended by Laws 1908, c. 442, passed in the exercise of the reserved power of the state over corporations, that railway employées shall be paid semimonthly, prohibiting carrier and employées from contracting otherwise.—*Erie R. Co. v. Williams*, 34 S. Ct. 761, 233 U. S. 685, 58 L. Ed. 1155, 51 L. R. A. (N. S.) 1097, affirming judgment 92 N. E. 1084, 199 N. Y. 525.

Freedom to contract is not infringed contrary to Const. U. S. Amend. 14, by Act Va. Feb. 13, 1888 (Laws 1887–88, c. 118 [Code 1904, § 3657d]), amending and re-enacting Laws 1887, c. 391, § 3, forbidding any person, firm, or corporation engaged in mining or manufacturing from issuing for the payment of labor any order unless redeemable in lawful money of the United States.—*Keokee Consol. Coke Co. v. Taylor*, 34 S. Ct. 856, 234 U. S. 224, 58 L. Ed. 1288.

Whatever right an employer or employé has, under the due process clause of Const. Amend. 14, to treat as ground for terminating the employment, he can provide against by a stipulation which may be a sine qua non of the employment.—*Coppage v. State of Kansas*, 35 S. Ct. 240, 236 U. S. 1, 59 L. Ed. 441, L. R. A. 1915C, 960, affirming judgment *State v. Coppage*, 125 P. 8, 87 Kan. 752.

The rights of personal liberty and property are infringed without due process of law contrary to Const. Amend. 14, by Laws Kan. 1903, c. 222, punishing an employer for having prescribed as a condition of employment that the employé shall not become or remain a member of a labor organization pending employment.—*Id.*

St. Cal. 1911, p. 437, forbidding employment of women for more than 8 hours a day or 48 hours a week, does not, as applied to women employed in hotels, violate Const. U. S. Amend. 14, as infringing freedom to contract.—*Miller v. Wilson*, 35 S. Ct. 342, 236 U. S. 373, 59 L. Ed. 628, L. R. A. 1915F, 829, affirming judgment *Ex parte Miller*, 124 P. 427, 162 Cal. 687.

A graduate woman pharmacist employed in a hospital is not denied freedom to contract given by Const. U. S. Amend. 14, because under St. Cal. 1911, p. 437, as amended by St. Cal. 1913, p. 713, she is forbidden to work more than 8 hours a day or 48 hours a week.—*Bosley v. McLaughlin*, 35 S. Ct. 345, 236 U. S. 385, 59 L. Ed. 632.

Forbidding women student nurses in a hospital school to work for longer than certain hours under St. Cal. 1911, p. 437, as amended by St. Cal. 1913, p. 713, does not infringe freedom to contract given by Const. U. S. Amend. 14.—*Id.*

Extension by St. Cal. 1913, p. 713, to women employed in hospitals, office assistants, and those engaged in household work, of the provisions of St. Cal. 1911, p. 437, does not render the statute invalid as denying freedom to contract.—*Id.*

Freedom to contract secured by Const. U. S. Amend. 14, against state invasion, is not infringed by the so-called Ohio "run-of-mine" or "anti-screen" law.—*Rail & River Coal Co. v. Yaple*, 35 S. Ct. 359, 236 U. S. 338, 59 L. Ed. 607, affirming decree (D. C.) 214 F. 273.

Due process of law is not denied by Act Ind. March 8, 1907 (Laws 1907, c. 121), requiring owners of coal mines and other similar places to provide suitable washhouses for employées on request.—*Booth v. State of Indiana*, 35 S. Ct. 617, 237 U. S. 391, 59 L. Ed. 1011, affirming judgment 100 N. E. 563, 179 Ind. 405.

Property is not taken without due process of law contrary to Const. U. S. Amend. 14, by Consol. Laws N. Y. c. 31, § 14, providing that only citizens can be employed in public works and that citizens of New York must be given preference.—*Heim v. McCall*, 36 S. Ct. 78, 239 U. S. 175, 60 L. Ed. 206, affirming judgment 108 N. E. 1095, 214 N. Y. 629.

—276. Deprivation of liberty to contract.

See 10 Cent. Dig. Const. Law. §§ 845, 846.

The prohibition against options to buy or sell grain or other commodities at a future time,

which is made by Cr. Code Ill. § 130, does not invade the liberty granted to every citizen by Const. U. S. Amend. art. 14. Judgment, 57 N. E. 798, 186 Ill. 43, 50 L. R. A. 762, 78 Am. St. Rep. 229, affirmed.—*Booth v. People of State of Illinois*, 22 S. Ct. 425, 184 U. S. 425, 46 L. Ed. 623.

No unconstitutional interference with the right of contract is made by Const. Cal. art. 4, § 26, avoiding all contracts for sales of shares of corporate stock on margin, and providing for the recovery of any money paid on such contracts, although this provision may be construed to apply to bona fide, as well as gambling, contracts. Judgment, *Parker v. Otis*, 62 P. 571, 927, 130 Cal. 322, 92 Am. St. Rep. 56, affirmed.—*Otis v. Parker*, 23 S. Ct. 168, 187 U. S. 606, 47 L. Ed. 323.

The constitutional guaranty of liberty of contract is not infringed by the enforcement of the provisions of Anti-Trust Act July 2, 1890, c. 647, 26 Stat. 209 [U. S. Comp. St. 1901, p. 3200], by a federal court decree enjoining a corporation formed in pursuance of a combination of stockholders in two competing interstate railway companies for the purpose of acquiring a controlling interest in the capital stock of such companies, from exercising the powers acquired by such corporation by virtue of its acquisition of such stock. Decree, *United States v. Northern Securities Co. (C. C.)* 120 F. 721, affirmed.—*Northern Securities Co. v. United States*, 24 S. Ct. 436, 193 U. S. 197, 48 L. Ed. 679.

The freedom to contract protected by Const. U. S. Amend. 14, is not unduly abridged by so much of the Kansas anti-trust law of March 8, 1897, as is construed by the state courts to forbid inducing four competitive wheat buyers in a single town to enter into an agreement under which, if either should purchase more than one-fourth of the wheat coming into the market, he should pay the others three cents a bushel for the excess. Judgment, *State v. Smiley*, 69 P. 199, 65 Kan. 240, 67 L. R. A. 903, affirmed.—*Smiley v. State of Kansas*, 25 S. Ct. 289, 196 U. S. 447, 49 L. Ed. 546.

Requiring a railway company in making its daily distribution of coal cars in times of car shortage to the bituminous coal mines on its line to desist from its practice not to count the company's fuel cars against the share of the mine receiving them cannot be said to destroy the freedom of contract, on the theory that any discriminations or preferences resulting from such practice arose from the fact that the railway company chose to purchase coal for its fuel supply from a particular mine or mines. Decree, *Chicago & A. R. Co. v. Interstate Commerce Commission (C. C. 1908)* 173 F. 930, reversed.—*Interstate Commerce Commission v. Illinois Cent. R. Co.*, 30 S. Ct. 155, 215 U. S. 452, 54 L. Ed. 280; *Same v. Chicago & A. R. Co.*, 30 S. Ct. 163, 215 U. S. 479, 54 L. Ed. 291.

The freedom of contract is not unreasonably abridged, in violation of Const. U. S. Amend. 14, by Code Miss. § 5002, which, as construed by the state court, condemns as a combination in restraint of trade an agreement between retail lumber dealers not to deal with any manufacturer or wholesale dealer who sells direct to consumers in localities in which such retail dealers conduct their business and keep a sufficient stock to meet demands, and to inform each other of any such sales.—(1910) *Grenada Lumber Co. v. State of Mississippi*, 30 S. Ct. 535, 217 U. S. 433, 54 L. Ed. 826, affirming decree *Retail Lumber Dealers' Ass'n v. State* (1909) 48 S. Ct. 1021.

The liberty of contract secured by Const. U. S. Amend. 5, was not unconstitutionally denied by the enactment by Congress, in the exercise of its power under the commerce clause, of the Carmack amendment (Act June 29, 1906, c. 3591, § 7, 34 Stat. 593 [U. S. Comp. St. Supp. 1909, p. 1163]) to Act Feb. 4, 1887, c.

104, § 20, 24 Stat. 379 [U. S. Comp. St. 1901, p. 3169], by which an interstate carrier voluntarily receiving property for transportation from a point in one state to a point in another state is made liable to the holder of the bill of lading for a loss anywhere en route, in spite of any agreement or stipulation to the contrary, with a right of recovery over against the carrier actually causing the loss.—(Sup., Ga., 1911) *Atlantic Coast Line R. Co. v. Riverside Mills*, 31 S. Ct. 164, 219 U. S. 186, 55 L. Ed. 167, 31 L. R. A. (N. S.) 7, affirming judgment *Riverside Mills v. Atlantic Coast Line R. Co. (C. C. 1909)* 168 F. 990; (Sup., Ky., 1911) *Louisville & N. R. Co. v. Scott*, 31 S. Ct. 171, 219 U. S. 209, 55 L. Ed. 183, affirming judgment (1909) 118 S. W. 990, 133 Ky. 724.

Making criminal any deduction by the purchaser from the actual weight of grain, seed, hay, or coal under a claim of right by reason of any custom or rule of a board of trade, as is done by Act June 8, 1909 (Acts Mo., 1909, p. 519), does not unconstitutionally interfere with the liberty to contract.—(1911) *House v. Mayes*, 31 S. Ct. 234, 219 U. S. 270, 55 L. Ed. 213, affirming judgment (1910) 127 S. W. 305, 227 Mo. 617.

The conduct of its business by a board of trade formed to enforce, as between its members, a high standard of business dealings, may be regulated by such means, not arbitrary or unreasonable in their nature, as may be found by the state necessary or needful to protect the people against unfair practices that are likely to occur, without unconstitutionally interfering with the liberty of contract to which its individual members are entitled.—Id.

The keeping of a place where corporate stocks and bonds and grains, provisions, and other commodities are bought and sold, but not paid for and delivered at the time, and where no complete record of the transactions, including a minute of the time of delivery, is made in a book kept for the purpose, and no memorandum of sale properly stamped is given the purchaser, may be made a criminal offense as is done by Act March 8, 1907 (Acts Mo., 1907, p. 392), in the exercise of the police power of the state without unconstitutionally interfering with the freedom to contract.—(1911) *Broadnax v. State of Missouri*, 31 S. Ct. 238, 219 U. S. 285, 55 L. Ed. 219, affirming judgment *State v. Broadnax* (1910) 128 S. W. 177, 228 Mo. 25.

The freedom of contract is not unconstitutionally infringed by amending the provisions of Code Iowa, § 2071, which define the liability of railway corporations for injuries resulting from negligence and mismanagement in the use and operation of their railways, so that a railway company, when sued on such liability, is precluded from making the defense that a recovery is barred by the acceptance of benefits under a contract of membership in its relief department.—(1911) *Chicago, B. & Q. R. Co. v. McGuire*, 31 S. Ct. 259, 219 U. S. 549, 55 L. Ed. 328, affirming judgment *McGuire v. Chicago, B. & Q. R. Co.* (1908) 116 N. W. 801, 138 Iowa, 664.

The constitutional liberty of the citizen to make contracts was not infringed by the enactment by Congress, in the exercise of its power over commerce, of the provisions of Act June 29, 1906, c. 3591, § 8, 34 Stat. 592 [U. S. Comp. St. Supp. 1909, p. 1163], which rendered unenforceable a prior contract, valid when made, by which an interstate carrier agreed to issue annual passes for life in consideration of a release of a claim for damages.—(1911) *Louisville & N. R. Co. v. Mottley*, 31 S. Ct. 265, 219 U. S. 467, 55 L. Ed. 297, 34 L. R. A. (N. S.) 671, reversing decree (1909) 118 S. W. 982, 133 Ky. 652.

Liberty to contract is not abridged in violation of Const. U. S. Amend. 14, by provision of Laws S. D. 1907, c. 131, punishing the selling of goods at a lower rate in one place than

in another, to destroy competition.—*Central Lumber Co. v. State of South Dakota*, 33 S. Ct. 66, 226 U. S. 157, 57 L. Ed. 184, affirming judgment *State v. Central Lumber Co.*, 123 N. W. 504, 24 S. D. 136.

Vendor in an executory contract to be performed within the state for the sale of land in another state is not deprived of his property without due process of law in an action for refusal to perform by the provision of Laws Minn. 1897, c. 223, that the vendor may not cancel the contract except on 30 days' written notice.—*Selover, Bates & Co. v. Walsh*, 33 S. Ct. 69, 226 U. S. 112, 57 L. Ed. 146, affirming judgment *Walsh v. Selover, Bates & Co.*, 123 N. W. 231, 109 Minn. 136.

Existence of demand in a city for bread of sizes other than those fixed by ordinance does not render the ordinance invalid as interfering with the freedom of contract protected by Const. U. S. Amend. 14.—*Schmidinger v. City of Chicago*, 33 S. Ct. 182, 226 U. S. 578, 57 L. Ed. 364, Ann. Cas. 1914B, 284, affirming judgments *City of Chicago v. Schmidinger*, 90 N. E. 369, 243 Ill. 167, and 92 N. E. 244, 245 Ill. 317.

Freedom to contract secured by Const. U. S. Amend. 14, is not infringed by Consol. Laws N. Y. c. 31, § 14, providing that only citizens of the United States shall be employed in the public works in the state.—*Heim v. McCall*, 36 S. Ct. 78, 239 U. S. 175, 60 L. Ed. 206, affirming judgment 108 N. E. 1095, 214 N. Y. 629.

277. Property and rights therein protected.

See 10 Cent. Dig. Const. Law, §§ 762, 766, 949.

A contestant of a pre-emption entry, who has neither made an entry on the land nor perfected a right to do so, has no vested right or interest therein of which he is deprived without due process of law by the act of congress of December 29, 1894, enacted during the pendency of the contest, confirming the title of the original entryman. Decree, 102 F. 559, 42 C. C. A. 499, affirmed.—*Emblen v. Lincoln Land Co.*, 22 S. Ct. 523, 184 U. S. 660, 46 L. Ed. 736.

No existing property rights are taken without due process of law by a state statute, passed in the exercise of its power over foreign corporations, incorporating a local benevolent society with the same name as that of a voluntary state association whose charter had been withdrawn by the foreign corporation that issued it, and conferring upon such society the exclusive right of granting subcharters in the state. Decree (1905) 51 S. E. 166, 104 Va. 197, affirmed.—*National Council, Junior Order United American Mechanics of United States v. State Council of Virginia, Junior Order United American Mechanics of Virginia*, 27 S. Ct. 46, 203 U. S. 151, 51 L. Ed. 132.

The police board of Boston, by issuing a liquor license, on a vacancy created by bankruptcy, to the nominee of the trustee in bankruptcy of the original licensee, does not deprive a co-licensee, to whom the original license had been assigned as security, of property without due process of law, where his so-called property right depends wholly upon the practice of the board to reissue licenses to the old holders until refused for cause, since such right, being of the board's creation, is subject to any limitations which the board may impose. Judgment (1905) 75 N. E. 637, 189 Mass. 260, affirmed.—*Tracy v. Ginzberg*, 27 S. Ct. 461, 205 U. S. 170, 51 L. Ed. 755.

278. Deprivation of property in general.

See 10 Cent. Dig. Const. Law, §§ 763, 765, 767-770, 772-777, 779-806, 808-810, 816-824, 907-924, 942.

A mortgage of real estate in Illinois to a corporation was executed at a time when such

mortgages were prohibited. A conveyance of the same property was made by the mortgagor subject to the mortgage, a part of the consideration being the assumption of the mortgage debt. Subsequently Act Ill. 1875 was passed, validating such mortgages theretofore made. *Held*, in a contest between the mortgagee and one claiming under the conveyance, that the validating act was not unconstitutional, as depriving any person of property without due process of law.—*Gross v. United States Mortg. Co.*, 108 U. S. 477, 2 S. Ct. 940, 27 L. Ed. 795.

Where one had had the peaceable, undisturbed possession of real or personal property, with an assertion of his ownership for the period which, under the law, would bar an action for its recovery by the real owner, the former has acquired a good title,—a title superior to that of the latter, whose neglect to avail himself of his legal right has lost him his title; and a legislative act that would remove the bar of the statute of limitations in such a case would deprive the former of his property without due process of law, and would be void.—*Campbell v. Holt*, 115 U. S. 620, 6 S. Ct. 209, 29 L. Ed. 483.

The failure of the probate court to require the guardian to give bond, as provided by the Ohio statute, when he makes sale of the ward's land, being a question of procedure merely, is not a breach of the constitutional provision against deprivation of property by a state "without due process of law."—*Arrowsmith v. Harmoning*, 118 U. S. 194, 6 S. Ct. 1023, 30 L. Ed. 243.

Under a statute of Michigan for the improvement of the Manistee river, a stream wholly within that state, an improvement company was organized that improved the channel of the river. The company was authorized by the statute to exact tolls for the use of the river thus improved. *Held*, that such a statute is not in violation of the provisions of the United States constitution embodied in the fourteenth amendment, which declares that no state shall deprive any person of life, liberty, or property without due process of law.—*Sands v. Manistee River Imp. Co.*, 123 U. S. 288, 8 S. Ct. 113, 31 L. Ed. 149; *Ruggles v. Same*, 123 U. S. 297, 8 S. Ct. 117, 31 L. Ed. 152.

Rev. St. § 4899, permitting one who has purchased or constructed, with the knowledge and consent of the inventor, a newly-invented machine before application for letters patent has been made, to continue to use it after the patent is granted, is not unconstitutional, as depriving one of his property without compensation.—*Dable Grain Shovel Co. v. Flint*, 137 U. S. 41, 11 S. Ct. 8, 34 L. Ed. 618, affirming judgment (C. C.) 42 F. 686.

It is within the police power of a state to enforce its legislation for the protection and regulation of its fisheries by enacting laws declaring any nets, pounds, or other devices (being articles of personal property of trifling value) used in violation of law to be public nuisances, which its game protectors and other persons are authorized to abate and summarily destroy (Laws N. Y. 1880, c. 591, as amended by Laws 1883, c. 317); and such legislation is not within the prohibition against deprivation of property without due process of law.—*Lawton v. Steele*, 152 U. S. 133, 14 S. Ct. 499, 38 L. Ed. 385, affirming judgment 119 N. Y. 226, 23 N. E. 878, 7 L. R. A. 134.

A statute authorizing the court, upon the petition of a party having an interest in a mine, after due notice and hearing, to order an inspection thereof when necessary for ascertaining, enforcing, or protecting the petitioner's rights (Code Civ. Proc. Mont. § 376), is not invalid as a taking of property without due process of law, although it does not define the right or interest of the petitioner, or require

him to give bond, or provide for a jury trial or an appeal.—*Montana Co. v. St. Louis Min. & Mill. Co.*, 152 U. S. 160, 14 S. Ct. 506, 38 L. Ed. 398, affirming judgment 9 Mont. 288, 23 P. 510.

A state statute which, as construed by the highest state court, prohibits a citizen of the state, under an open policy of marine insurance, effected outside the state, in a foreign insurance company which has not complied with the state laws, from sending by mail or telegraph, while in the state, a notice describing particular goods then within the state, upon which he desires the insurance under the open policy to attach (*Acts La. 1894, No. 66*), operates to deprive such citizen of his liberty without due process of law.—*Allgeyer v. State of Louisiana*, 17 S. Ct. 427, 165 U. S. 578, 41 L. Ed. 832, reversing judgment 18 So. 904.

An ordinance prescribing limits in a city outside of which no woman of lewd character shall dwell, with a proviso that nothing therein shall be so construed as to authorize such women to occupy a house in any portion of the city, and with nothing in the ordinance to deny the ordinary rights of individuals to restrain a private nuisance, is an exercise of the police power which does not invade the rights of property owners in or adjacent to the prescribed limits, in violation of the federal constitution, although the pecuniary value of their property may be depreciated in consequence thereof. Judgment, 24 So. 608, 51 La. Ann. 93, 44 L. R. A. 90, affirmed.—*L'Hote v. City of New Orleans*, 20 S. Ct. 788, 177 U. S. 587, 44 L. Ed. 899.

A foreign steamship company is not deprived of its property without due process of law by the action of the Louisiana state board of health, authorized by *Acts La. 1898, No. 192, § 8*, in prohibiting it from landing the passengers on one of its steamers at New Orleans, or any place contiguous thereto, because of the existence of an infectious disease in that city. Judgment, 25 So. 591, 51 La. Ann. 645, 56 L. R. A. 795, 72 Am. St. Rep. 795, affirmed.—*Compagnie Française de Navigation à Vapeur v. Board of Health of State of Louisiana*, 22 S. Ct. 811, 186 U. S. 380, 46 L. Ed. 1209.

Due process of law is not denied the owners of property damaged by the enforcement of a restriction on the height of buildings on certain Boston streets, imposed by *Act Mass. May 23, 1898*, on the theory that the right of action thereby given to recover the damages from the city of Boston "in the manner prescribed by law for obtaining payment for damages by any person whose land is taken in the laying out of a highway" does not afford adequate provision for compensation, because the city, not being a party to the taking, is not technically estopped to deny its liability, since such statutory liability is of a character which, under the decisions of the state courts, the Legislature may impose on a municipality. Judgment, *Attorney General v. Williams*, 59 N. E. 812, 178 Mass. 330, affirmed.—*Williams v. Parker*, 23 S. Ct. 440, 188 U. S. 491, 47 L. Ed. 559.

The safeguards for the protection of the property of an absentee in case of his return, afforded by *Laws Pa. 1885, p. 155*, providing a special proceeding for the administration of the estates of absentees, satisfy the requirement of the due process of law clause of *Const. U. S. Amend. art. 14*, where that statute authorizes the revocation of the administration at any time on proof that the absentee is in fact alive, and in such event permits him to recover the shares of his estate received by the distributees, and provides that until the latter shall give security for refunding their shares, with interest, in case the supposed decedent shall be alive, no distribution shall be made, and that in case of inability to give such security the money shall be invested under the control of the court, and

the interest only paid to the distributees. Judgment, 58 A. 16, 206 Pa. 469, 98 Am. St. Rep. 790, affirmed.—*Cunnius v. Reading School Dist.*, 25 S. Ct. 721, 198 U. S. 458, 49 L. Ed. 1125, 3 Ann. Cas. 1121.

Fixing the period of a person's absence from his last domicile within the state, which will be sufficient, under *Laws Pa. 1885, p. 155*, to authorize the administration of his property by the special proceeding provided by that statute at seven or more years, is not so unreasonable as to render the statute repugnant to the due process of law clause of *Const. U. S. Amend. art. 14*.—*Id.*

The due process of law clause of *Const. U. S. Amend. art. 14*, does not wholly deprive a state of the power to confer jurisdiction on its courts to administer the estates of absentees, irrespective of the fact of death, by a special and appropriate proceeding distinct from the general law for the settlement of the estates of decedents.—*Id.*

The property of a school district is not taken without due process of law by the creation, by *Laws Mich. 1901, Loc. Acts No. 315*, of a new district, to which was given the property within its limits which had belonged to the districts from which it was created. Judgment, *Attorney General v. Lowrey*, 92 N. W. 289, 131 Mich. 639, 9 Detroit Leg. N. 470, affirmed.—*Attorney General of State of Michigan v. Lowrey*, 26 S. Ct. 27, 199 U. S. 233, 50 L. Ed. 167.

Municipal ordinances requiring all garbage and other refuse matter to be delivered at a specified crematory or reduction plant, there to be cremated or destroyed at the expense of the person, company, or corporation conveying the same, are not wanting in the due process of law required by *Const. U. S. Amend. 14*, as taking private property for public use without compensation, even if some of the substances so destroyed may have had some elements of value. Decree, 126 F. 29, 61 C. C. A. 91, affirmed.—*California Reduction Co. v. Sanitary Reduction Works of San Francisco*, 26 S. Ct. 100, 199 U. S. 306, 50 L. Ed. 204.

An ordinance conferring on a city contractor the exclusive right to collect and dispose of garbage is not, so far as it relates to the refuse from the tables of hotels, wanting in the due process of law required by *Const. U. S. Amend. 14*, as depriving the owner of his property without compensation, although such refuse may be valuable as food for swine, or for the manufacture of merchantable grease and other products. Judgment, *People v. Gardner*, 100 N. W. 126, 136 Mich. 893, 11 Detroit Leg. N. 166, affirmed.—*Gardner v. People of State of Michigan*, 26 S. Ct. 106, 199 U. S. 325, 50 L. Ed. 212.

A provision of the sanitary code of the city of New York which is construed by the state courts to confer discretionary power on the board of health, within reasonable limits, to grant or withhold permits to sell milk in that city, cannot be deemed to be lacking in the due process of law guaranteed by *Const. U. S. Amend. 14*, in the absence of any showing of arbitrary or oppressive exercise of such power. Judgments 67 N. E. 913, 175 N. Y. 440, 108 Am. St. Rep. 781, and 80 N. Y. S. 1108, 81 App. Div. 128, affirmed.—*People of State of New York v. Van De Carr*, 26 S. Ct. 144, 199 U. S. 552, 50 L. Ed. 305.

The right to take possession of the property of a street railway company remaining in the streets at the expiration of its franchise cannot, consistently with due process of law, be conferred by municipal ordinance upon another street railway company. Decree (*C. C. 1905*) 137 F. 111, affirmed.—*Cleveland Electric Ry. Co. v. City of Cleveland*, 27 S. Ct. 202, 204 U. S. 116, 51 L. Ed. 399.